SOLICITATION, OFFER, AND AWARD *(Construction, Alteration, or Repair)*	1. SOLICITATION NUMBER	2. TYPE OF SOLICITATION	3. DATE ISSUED	PAGE OF PAGES
	2031ZA26R00027	☐ SEALED BID *(IFB)* ☐ NEGOTIATED *(RFP)*		1 90

IMPORTANT - The "offer" section on the reverse must be fully completed by offeror.

4. CONTRACT NUMBER	5. REQUISITION/PURCHASE REQUEST NUMBER	6. PROJECT NUMBER

7. ISSUED BY	CODE	8. ADDRESS OFFER TO
BEP-ACQUISITION Bureau of Engraving and Printing, Office of Acquisition, 301 14th Street SW Washington, DC, 20228-0001, US	2031ZA	

9. FOR INFORMATION CALL:	a. NAME	b. TELEPHONE NUMBER *(Include area code) (NO COLLECT CALLS)*
	Williams, LaQulla Lashun	202.486.2465

SOLICITATION

NOTE: In sealed bid solicitations "offer" and "offeror" mean "bid and "bidder".

10. THE GOVERNMENT REQUIRES PERFORMANCE OF THE WORK DESCRIBED IN THESE DOCUMENTS *(Title, identifying number, date)*

Design-Build Cooling Tower, Roofing, and Structural Construction at DCF Bureau of Engraving and Printing.

Attachment 1 - Past Performance Questionnaire
Attachment 2 - Davis-Bacon Wage Determination
Attachment 3 - Statement of Work(SOW) – Cooling Towers
Attachment 4 - Pricing Table
Attachment 5 - Quality Assurance Surveillance Plan
Attachment 6 - Initial Staffing Plan
Attachment 7 - Monthly Workforce Report

Include attachments 8, 10,11,12 and 14-32.

Total small business set-aside under NAICS 236220, $45.0M size standard. The magnitude of construction is Between $1,000,000 and $5,000,000. Offerors must be classified as small business as of the date the offer is submitted and on the date of award.

A pre-proposal site visit has been scheduled for 09/30/2026 at 9:00 AM. Must RSVP via email to the Contracting Officer at least 5 days prior to the site visit. For further information regarding the site visit refer to Section L.4 52.236-27 Site Visit (Construction) (FEB 1995).of this solicitation.

All questions regarding this solicitation must be emailed directly to the CONTRACTING OFFICER Laqulla Williams at Laqulla.Williams@bep.gov ONLY by the required deadline outlined in section L.6 of this solicitation.

11. The contractor shall begin performance within 3 calendar days and complete it within 730 calendar days after receiving ☐ award, ☒ notice to proceed. This performance period is ☒ mandatory ☐ negotiable. ***(See _____).***

12a. THE CONTRACTOR MUST FURNISH ANY REQUIRED PERFORMANCE AND PAYMENT BONDS? *(If "YES", indicate within how many calendar days after award in Item 12b.)*	12b. CALENDAR DAYS
☒ YES ☐ NO	10

13. ADDITIONAL SOLICITATION REQUIREMENTS:

a. Sealed offers in original and 1 copies to perform the work required are due at the place specified in Item 8 by 12:00 PM CST **(hour)** local time December 11, 2026 . If this is a sealed bid solicitation, offers will be publicly opened at that time. Sealed envelopes containing offers shall be marked to show the offeror's name and address, the solicitation number, and the date and time offers are due.

b. An offer guarantee ☒ is, ☐ is not required.

c. All offers are subject to the (1) work requirements, and (2) other provisions and clauses incorporated in the solicitation in full text or by reference.

d. Offers providing less than 150 calendar days for Government acceptance after the date offers are due will not be considered and will be rejected.

OFFER *(Must be fully completed by offeror)*

14. NAME AND ADDRESS OF OFFEROR *(Include ZIP Code)*	15. TELEPHONE NUMBER *(Include area code)*
	16. REMITTANCE ADDRESS *(Include only if different than Item 14.)*
CODE FACILITY CODE	

17. The offeror agrees to perform the work required at the prices specified below in strict accordance with the terms of this solicitation, if this offer is accepted by the Government in writing within _____ calendar days after the date offers are due. *(Insert any number equal to or greater than the minimum requirement stated in Item 13d. Failure to insert any number means the offeror accepts the minimum in Item 13d.)*

AMOUNTS ▶

18. The offeror agrees to furnish any required performance and payment bonds.

19. ACKNOWLEDGMENT OF AMENDMENTS

(The offeror acknowledges receipt of amendments to the solicitation -- give number and date of each)

AMENDMENT NUMBER										
DATE.										

20a. NAME AND TITLE OF PERSON AUTHORIZED TO SIGN OFFER *(Type or print)*	20b. SIGNATURE	20c. OFFER DATE

AWARD *(To be completed by Government)*

21. ITEMS ACCEPTED:

22. AMOUNT	23. ACCOUNTING AND APPROPRIATION DATA

24. SUBMIT INVOICES TO ADDRESS SHOWN IN *(4 copies unless otherwise specified)* ▶	ITEM See Schedule	25. OTHER THAN FULL AND OPEN COMPETITION PURSUANT TO ☐ 10 U.S.C. 2304(c) ( ) ☐ 41 U.S.C. 3304(a) ( )
26. ADMINISTERED BY		27. PAYMENT WILL BE MADE BY

CONTRACTING OFFICER WILL COMPLETE ITEM 28 OR 29 AS APPLICABLE

☐ 28. NEGOTIATED AGREEMENT *(Contractor is required to sign this document and return _____ copies to issuing office.)* Contractor agrees to furnish and deliver all items or perform all work requirements identified on this form and any continuation sheets for the consideration stated in this contract. The rights and obligations of the parties to this contract shall be governed by (a) this contract award, (b) the solicitation, and (c) the clauses, representations, certifications, and specifications incorporated by reference in or attached to this contract.

☐ 29. AWARD *(Contractor is not required to sign this document.)* Your offer on this solicitation is hereby accepted as to the items listed. This award consummates the contract, which consists of (a) the Government solicitation and your offer, and (b) this contract award. No further contractual document is necessary.

30a. NAME AND TITLE OF CONTRACTOR OR PERSON AUTHORIZED TO SIGN *(Type or print)*		31a. NAME OF CONTRACTING OFFICER *(Type or print)* Laqulla Williams	
30b. SIGNATURE	30c. DATE	31b. UNITED STATES OF AMERICA BY	31c. DATE

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Listing of incorporated Purchase Requisitions

To Be Determined (TBD)

SECTION B - Prices

B.1 Supplies or Services and Prices or Costs:

Item Number	Base Item Number	Supplies/Services	Quantity	Unit
0001		This is a design build project, requirements and deliverables, including, but not limited to, a complete assessment of the scope of work, recommendation of the scope of work, demolition, and the replacement of two existing Evapco cooling towers (Model: AT 424-936) **(BRAND NAME OR EQUAL)**, and replacement of one BAC cooling tower (model number is VXT-800CR from Baltimore air coil company, Serial number is 84-5979) **(BRAND NAME OR EQUAL)** associated structural steel platform, roofing replacement, associated structural components, associated mechanical components, associated electrical components, pump, motors, piping, chemical feed, fire/smoke detector system, condenser water motor/pumps, electrical circuit breaker, piping insulation, SCADA integration, and associated control systems. The project must adhere to all guidelines and code, including but not limited to, the International Plumbing Code (IPC), the American Society of Heating, Refrigeration, and Air Conditioning Engineers (ASHRAE) standard and guideline, the American Society of Mechanical Engineers (ASME) codes and standards and the National Electrical Code, etc. SEE STATEMENT OF WORK (SOW) ATTACHED.	1	LS
Contract Type: Firm Fixed Price				
		Unit Price		
		Extended Price		
	Description:			
Purchase Requisitions				

LS = Lump Sum

Must provide an itemized breakdown of all divisions and subdivisions of cost associated with your proposal for the line item above.

B.1 Period of Performance

The period of performance for this contract shall not exceed more than 730 calendar days from the issuance of the Notice to Proceed (NTP) to completion.

(END OF SECTION B)

SECTION C – DESCRIPTION/SPECIFICATIONS/STATEMENT OF WORK

C.1 STATEMENT OF WORK:

The contractor shall furnish the necessary personnel, material, equipment, services, and facilities to perform the work in accordance with the Statement of Work (SOW) entitled Bureau of Engraving and Printing (BEP) Cooling Tower, Roofing, and Structural Construction Services for the District Currency Facility in Washington DC. See Attachment 3

(END OF SECTION C)

SECTION D – PACKAGING AND MARKING

D.1 PAYMENT OF POSTAGE AND FEES

All postage and fees related to submitting information including forms, reports, submittals, etc., to the Contracting Officer (CO) or the Contracting Officer's Representative (COR) shall be paid by the Contractor.

D.2 PACKAGING AND MARKING

All information submitted to the Contacting Officer or the COR shall clearly indicate the contract number and/or purchase order number for which the information is being submitted. All containers shall be plainly marked on or adjacent to the exterior shipping label to show the contract number, purchase order number (if any), description of contents, and contractor's name.

(END OF SECTION D)

SECTION E - INSPECTION AND ACCEPTANCE

E.1 CONTRACTOR MONITORING RESPONSIBILITY

Notwithstanding FAR 52.246-12, Inspection of Construction, the contractor is responsible for periodic and day-to-day inspection and monitoring of all work performed to ensure compliance with the contract requirements. The contractor shall note any deficiencies found and corrective action taken and document his corresponding file as to the outcome.

E.2 FAR 52.252-2 CLAUSES INCORPORATED BY REFERENCE (FEB 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address (es): https://www.acquisition.gov/browse/index/far.

CLAUSE TITLE AND DATE
52.246-12 Inspection of Construction (AUG 1996)
(End of clause)

(END OF SECTION E)

SECTION F – DELIVERIES OR PERFORMANCE

F.1 WORK HOURS

Work as described under this contract shall be accomplished during Normal Working Hours, which are defined as 8:00 am to 5:00 p.m. Eastern Standard Time, Monday through Friday, unless otherwise specifically required by and authorized by the Contracting Officer.

F.2 PERIOD OF CONTRACT

The period of performance for this contract shall not exceed more than 730 calendar days from the issuance of the Notice to Proceed (NTP) to completion.

F.3 PLACE OF PERFORMANCE

Work shall be performed at the following location:

BEP DCF
14th & C Streets, S.W.
Washington, D.C.

F.4 FAR 52.252-2 CLAUSES INCORPORATED BY REFERENCE (FEB 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address (es): https://www.acquisition.gov/browse/index/far.

CLAUSE TITLE AND DATE REFERENCE

52.242-14 Suspension of Work (APR 1984)
52.247-35 F.O.B. Destination Within the Consignee's Premises (APR 1984)

F.5 FAR CLAUSE INCORPORATED BY FULL TEXT

52.211-10 – COMMENCEMENT, PROSECUTION, AND COMPLETION OF WORK (APR 1984)

The Contractor shall be required to (a) commence work under this contract the Contractor receives the notice to proceed, (b) prosecute the work diligently, and (c) complete the entire work ready for use not later than 730 days after the date the contractor receives the notice to proceed. The time stated for completion shall include final cleanup of the premises.
(End of clause)

(END OF SECTION F)

SECTION G – CONTRACT ADMINISTRATION DATA

G.1 CONTRACT ADMINISTRATION OFFICE

This contract will be administered by:

Bureau of Engraving and Printing
14th and C Streets, S.W.,
Washington, DC 20228-0001

Written communications shall make reference to the contract number and shall be e-mailed to the following address: Laqulla.Williams@bep.gov.

G.2 1052.201-70 CONTRACTING OFFICER'S REPRESENTATIVE (COR) DESIGNATION AND AUTHORITY (APR 2015)

The COR is (To be identified at award).

Performance of work under this contract is subject to the technical direction of the COR identified above, or a representative designated in writing. The term “technical direction” includes, without limitation, direction to the contractor that directs or redirects the labor effort, shifts the work between work areas or locations, and/or fills in details and otherwise serves to ensure that tasks outlined in the work statement are accomplished satisfactorily.
Technical direction must be within the scope of the contract specification(s)/work statement.

The COR does not have authority to issue technical direction that:

Constitutes a change of assignment or additional work outside the contract specification(s)/work statement;
Constitutes a change as defined in the clause entitled “Changes”;
In any manner causes an increase or decrease in the contract price, or the time required for contract performance;
Changes any of the terms, conditions, or specification(s)/work statement of the contract;
Interferes with the contractor's right to perform under the terms and conditions of the contract; or
Directs, supervises or otherwise controls the actions of the Contractor's employees.
Technical direction may be oral or in writing. The COR must confirm oral direction in writing within five workdays, with a copy to the Contracting Officer.

The Contractor shall proceed promptly with performance resulting from the technical direction issued by the COR. If, in the opinion of the Contractor, any direction of the COR or the designated representative falls within the limitations of (c) above, the Contractor shall immediately notify the Contracting Officer no later than the beginning of the next Government work day.

Failure of the Contractor and the Contracting Officer to agree that technical direction is within

the scope of the contract shall be subject to the terms of the clause entitled “Disputes.”
(End of Clause)

G.3 ELECTRONIC FUNDS TRANSFER
1052.232-7003 ELECTRONIC SUBMISSION OF PAYMENT REQUESTS (APR 2015)
Definitions. As used in this clause -
(1) “Payment request” means a bill, voucher, invoice, or request for contract financing payment with associated supporting documentation. The payment request must comply with the requirements identified in FAR 32.905(b), “Content of Invoices” and the applicable Payment clause included in this contract.
Except as provided in paragraph (c) of this clause, the Contractor shall submit payment requests electronically using the Invoice Processing Platform (IPP). Information regarding IPP, including IPP Customer Support contact information, is available at www.ipp.gov or any successor site.
The Contractor may submit payment requests using other than IPP only when the Contracting Officer authorizes alternate procedures in writing in accordance with Treasury procedures.
If alternate payment procedures are authorized, the Contractor shall include a copy of the Contracting Officer's written authorization with each payment request.
(End of Clause)

G.4 DISCOUNTS
Discounts for early payment may be offered either in the original offer or on individual invoices submitted under the resulting contract, and discounts offered will be taken by the Government if payment is made within the discount period specified.

Discounts that are included in offers become a part of the resulting contract and are binding on the Contractor. Discounts offered only on individual invoices will be binding on the Contractor only for the particular invoice on which the discount is offered.
Discounts for prompt payment will be made in accordance with FAR 52.232-8.

(END OF SECTION G)

SECTION H - SPECIAL CONTRACT REQUIREMENTS

H.1 USE OF GOVERNMENT FACILITIES ON A NO-CHARGE BASIS

The contractor is authorized to use on a no-charge basis, in the performance of the contract, the Government-owned facilities as identified below:
Bureau Canteen (At the Contractor's Expense)
Rest Rooms
Utility lines
Space for storage of materials and equipment as authorized by the Contracting Officer's Representative. All hose extension, wiring, etc., required for connection for utility lines shall be furnished by the Contractor.

H.2 SECURITY CLEARANCE OF CONTRACTOR'S EMPLOYEES

Contractor and subcontractor employees involved in the repair, maintenance, installation, modification, inspection, or any other capacity requiring access to the BEP, access to the BEP computer systems or information contained therein, or other information pertinent to BEP personnel or security operations shall be subjected to suitability investigations, conducted by the BEP, before assignment to perform work under this contract.

All Contractor and subcontractor personnel requiring access to the BEP or working on the BEP contract will be required to complete and submit, to the COR, all security forms furnished by the Personnel Security Division, commensurate with the sensitivity of their positions.
Upon receipt of the Statement of Work the Office of Security will provide an assessment of access level and the type of background investigation that will be granted as well as the appropriate Position Sensitivity Levels which will be assigned to all positions occupied by Contractor and Subcontractor employees. The position sensitivity of all positions occupied by Contractor and Subcontractor employees, which involve access to the Personal Computer function, including those involved in the inspection of the work are designated as Low Risk. Should other positions be identified, requiring a higher sensitivity, the position sensitivity shall be designated as High Risk. Access to the BEP and placement in these positions require that the BEP conduct a Full Field Background investigation, and that it be favorably completed. Required security packets are required to be submitted to the COR, within ten (10) working days, for use by Personnel Security Division, Office of Security. The Contractor shall submit packages of all personnel expected to be present at the Bureau for extended periods of time in excess of ten (10) working days no later than ninety (90) days prior to the delivery of the equipment to the Bureaus.

The BEP reserves the right to deny access to its facilities and/or security systems, following adjudicative guidelines set forth in Executive Order 10450 and applicable supplemental directives, to any individual about which an adverse suitability determination is made. Failure to submit the required security investigation packet or to truthfully answer all questions contained in security investigation packets shall constitute grounds for denial of access clearance.

The selected Contractor shall not provide access to employees, or subcontract employees, until written access clearance is provided by the Personnel Security Branch, office of Security, BEP. Contractors and subcontractors are responsible for reporting all changes to the COR within five (5) days of the occurrence of the change concerning any of their employees, which may affect the suitability of their employees for access to the BEP or placement in any of these positions including additions, or deletions.

The COR shall maintain a current listing of access requirements and provide that information to the Personnel Security Division, BEP. The Personnel Security Division will inform the COR of all access denials. The reason for the denial will not be provided to the company contact in accordance with the Privacy Act of 1974. Denial of access to the BEP does not preclude employment of the individual concerned, by the Contractor, in any capacity not associated with the contract. Reinvestigation may be required throughout the life of the contract to adhere to Government security requirements.

The COR shall maintain a current listing of access requirements and provide that information to the Personnel Security Division, BEP. The Personnel Security Division will inform the COR of all access denials. The reason for the denial will not be provided to the company contact in accordance with the Privacy Act of 1974. Denial of access to the BEP does not preclude employment of the individual concerned, by the Contractor, in any capacity not associated with the contract.

Reinvestigation may be required throughout the life of the contract to adhere to Government security requirements.

H.3 NOTICE TO THE GOVERNMENT OF DELAYS

In the event the contractor encounters difficulty in meeting performance requirements, or when the contractor anticipates difficulty in complying with the contract delivery schedule or date, or whenever the contractor has knowledge that any actual or potential situation is delaying or threatens to delay the timely performance of this contract, the contractor shall immediately notify the Contracting Officer and the COR, in writing, giving pertinent details.

H.4 ADVERTISING OF AWARD

The contractor agrees not to refer to awards in commercial advertising in such a manner as to state or imply that the product or service provided is endorsed or preferred by the Federal Government, or is considered by the Government to be superior to other products or services. Advertisements, press releases, and publicity of a contract by a contractor shall not be made without the prior express written permission of the Contracting Officer.

H.5 INTERPRETATION OF CONTRACT REQUIREMENTS

If the Contractor finds clarification necessary with respect to the scope of services to be performed or manner in which the services are to be performed hereunder, he shall request in writing such clarification from the Contracting Officer. No interpretation of any provision of this contract, including applicable specifications, shall be binding on the Government unless

furnished or agreed to in writing by the Contracting Officer.

H.6 STANDARD COMMERCIAL WARRANTY

The Contractor agrees that the supplies or services furnished under this contract shall be covered by the most favorable commercial warranties the contractor gives to any customer for such supplies or services and that the rights and remedies provided therein are in addition to and do not limit any rights and remedies provided to the Government by any other clause of this contract.

H.7 PERMITS AND LICENSES – GENERAL

In the performance of work hereunder, the contractor shall obtain and maintain in effect all necessary permits and licenses required by Federal, States, or local government, or subdivision thereof, or of any other duly constituted regulatory authority.
Permits and licenses shall include but are not limited to those required by the Occupational Safety and Health Administration General Industry Standards 29 CFR 1910 and ISGA and SARA Worker and Community Right-To-Know /Regulations. The Contractor shall comply with all laws and regulations applicable to the work to be performed hereunder and shall insure that its sub-contractors are in compliance as well.

H.8 SUPERVISION OF CONTRACTOR'S EMPLOYEES

A. Personnel assigned to render services under this contract shall at all times be employees of the Contractor and under the direction and control of the Contractor. Notwithstanding any other provisions of this contract, the Contractor shall at all times be responsible for the supervision of its employees in the performance of the services required hereunder.

B. The Contractor shall provide key personnel who possess the following:

1. Project manager – Shall have a bachelor's degree from a U.S. accredited university or college with a major in engineering, architecture, or related technical field, and/or at least five years' experience in managing architectural, engineering or construction projects of similar size and scope and five (5) years' experience in Historical Government Buildings. The Project Manager shall be employed by the Prime Contractor.

2. Specialized Technical Personnel: Specialized Technical Personnel shall have a bachelor's degree from a U.S. accredited university or college with a major in engineering, architecture, or related technical field. Personnel shall demonstrate work experience, licenses (Professional Engineering) and technical competence of electrical, mechanical, structural/civil, architectural, fire protection, or environmental requirements covering the last five (5) years.

3. Project Superintendent: The Project Superintendent shall have a minimum of five (5) years' experience as a superintendent on projects similar in size and scope, and five (5) years' experience in Historical Government Buildings. be employed by the Prime

Contractor. The project superintendent shall have overall responsibility for all operations on the jobsite.

C. During all times on Government premises, the contractor's personnel shall comply with the rules and regulations governing conduct of personnel and operation of the facility.

D. If the contractor plans to employ any Non-English speaking personnel, he shall provide an on-site bi-lingual supervisor to serve as an interpreter.

E. Contractor personnel shall not at any time during the contract period be employees of the U.S. Government.

H.9 WORKING FILES

The Contractor shall maintain accurate working files on all work documentation including calculations, assumptions, interpretations of regulations, sources of information, and other raw data required in the performance of the contract. The Contractor shall provide the information contained in its working files upon request of the Contracting Officer.

H.10 NON-PAYMENT FOR ADDITIONAL WORK

Any additional services or a change to work specified which may be performed by the contractor, either at his own volition or at the request of an individual other than a duly appointed Contracting Officer except as may be explicitly authorized in the contract order, are not authorized and will not be paid for by BEP. Only a duly appointed Contracting Officer is authorized to change the specifications, terms and conditions in this contract.

H.11 INDEMNIFICATION

The Contractor shall indemnify and hold harmless the Bureau of Engraving and Printing, Department of the Treasury, and its officers, agents, representatives, and employees from all claims, loss, damage, actions, causes of action, expense and/or liability resulting from, brought for, or on account of any personal injury or property damage received or sustained by any person, or property growing out of, occurring or attributable to any work performed under or related to this contract caused.

H.12 ACCESS TO GOVERNMENT FACILITIES

During the life of the contract, the rights of the ingress and egress to and from the Government facility for the contractor's employees shall be made available as required. During all operations on Government premises, the contractor's employees shall comply with the rules and regulations governing the conduct of personnel and the operation of the facility. The Government reserves the right to require the contractor's employees to sign in upon ingress and sign out upon egress to and from the Government facility.

H.12 SAFETY PRECAUTIONS

The contractor shall be responsible for all damages to persons or property that occurs as a result of his fault or negligence. The contractor shall take proper safety and health precautions to protect the work, the workers, the public, and property of others. The contractor shall also be responsible for all materials delivered and work performed until completion and acceptance of the service.

The contractor is responsible for the safety and health of their personnel and shall comply with OSHA rules and regulations while working on Bureau premises. The Office of Environmental Safety and Occupational Health (OESOH) may monitor the activities of the contractor during the project.

The contractor shall provide personal protective equipment (PPE) for personnel entering areas of the Bureau where such (PPE) is required, such as the use of safety shoes, hard hats, hearing protection, safety glasses, etc. In addition, the Bureau is a Non-Smoking building, which policy will be strictly enforced.

The contractor conducting welding or burning operations will report to the COR before starting the operation so that he/she can notify the OESOH to obtain approval. OESOH expects the contractor to follow safe welding and burning procedures. This includes maintaining a proper fire watch, removing or shielding all flammable and combustible materials, and shielding the actual process to contain sparks and electrical arc from other persons in the area.

The Bureau will not permit the use of powder-actuated fasteners or other powder tools such as nail guns, gasoline and diesel powered equipment within the BEP Buildings. The use of propane-powered equipment indoors may be approved on a case-by-case basis by CO/COR, if the equipment is outfitted with an effective catalyst exhaust system. The exhaust catalyst must reduce carbon monoxide (CO) emissions at the exhaust pipe opening to 25 parts per million (25 ppm) or less.

The Bureau requires contractors to provide their own fire extinguishers. In the event the contractor uses a fire extinguisher, it should report the use to OESOH immediately so the extinguisher can be replaced.

In the event the contractor encounters asbestos or a substance he or she believes to be asbestos during work in the Bureau, the contractor must stop work immediately and report the findings to the COR. The COR must notify the OESOH, which will determine if the substance is asbestos-containing materials (ACM). All identified ACM has been labeled, with the exception of vinyl asbestos floor tile and transit cement wallboard. This labeling is either in the form of the letters “ACM” in red paint or simply a Red Painted Dot on surfaces to small for proper stenciling. It is not the contractor’s responsibility to abate asbestos. This effort will be coordinated thought the Bureau’s Asbestos Abatement Contractor through OESOH prior to demolition. Should the suspected ACM be encountered during demolition, the COR should be contacted immediately, who will in turn contact OESOH.
The contractor shall take precautions to eliminate or reduce employee exposure to toxic substances, excessive noise, dust or other conditions that may result from the contractor’s work.

In the event the contractor cannot reduce the exposure, the COR may require the rescheduling of work during a time when the area is not fully operating.

H.14 PROJECT MEETINGS

A. Each week the contractor shall hold a progress meeting to review progress to date and to resolve all questions for the upcoming week. The progress meeting shall include at a minimum, the Contract Specialist administering the project, the project manager representing the Contractor, the COR and the Bureau inspector. Technical supervisor (foreman), sub-contractors, suppliers, etc. shall attend when requested by the Contracting Officer. The meeting shall be same day, time, and place each week. Include meeting agenda with notification.

B. Meeting Minutes - The contractor shall take minutes of all meetings held relative to this project. The format must be acceptable to the Contracting Officer (CO). Minutes must include the meeting date and time; agenda; meeting location; list of participants with their affiliations, addresses and telephone numbers; be fully descriptive of issues, problems and decisions made; and action items with names of responsible parties and deadlines.

   In addition, the minutes must include, as attachments, all exhibits and references distributed as handout materials, unless the materials are part of a formal submission. The contractor shall provide, via facsimile transmission, complete copies of all minutes to CO and all attendees within 48 hours of the meeting.

   All challenges to the minutes will be reflected in a revised version prepared by the Contractor. Copies of updated minutes shall be distributed to the Contracting Officer and all attendees within 24 hours after change notice

H.15 CONSTRUCTION FACILITIES AND TEMPORARY CONTROLS

A. Government telephone facilities at BEP will not be made available to the Contractor. Any request for contractor telephone service will be made through the Verizon telephone company, with the contractor assuming all costs incurred.

B. Provide security services and systems such as to achieve 24-hour, 7-day per week protection B. from theft, vandalism, personal injury, and property damage. Coordinate with the government's security programs; the government may prefer to expand existing programs and facilities to cover construction, operations, in which case the contractor must be informed of these requirements and each entity's responsibilities thereof. Provisions shall include, but not be limited to, the following:
   1. Provide a project security program to protect work, stored products, and construction equipment.
   2. Protect owner's operations at the site from theft, vandalism, or damage from the contractor's work or employees.
   3. Comply with security requirements of the Bureau of Engraving and Printing security department.

4. The contractor shall coordinate with the Bureau of Engraving and Printing to ensure against unauthorized entrance at all times.
5. Maintain security programs throughout the construction period, until the owner acceptance precludes the need for contractor security.

C. Entrance Control

1. Require display of the bureau issued badge by each person. Badges shall be worn above the waist. Maintain a log of all visitors.
2. The owner shall control deliveries and vehicles related to his own operations.
3. Cameras shall not be permitted; on, in, or near the project site and no photograph of any kind shall be taken.
4. Ensure that dust is held to an absolute minimum during all portions of the work. Security Barrier/Dust Partition shall be erected to control dust and service areas not included “under construction”. Erect barriers per detail on contract drawings.

H.16 Material and equipment incorporated into the work

A. Conform to applicable specifications and standards.

B. Comply with size, make, type, and quality specified, or as specifically approved in writing by the contracting officer.

H.17 Manufactured and fabricated products

A. Design, fabricate, and assemble in accordance with the best engineering and shop practices.
B. Manufacture like parts of duplicate units to standard sizes and gages, to be interchangeable.
C. Two or more items of the same kind shall be identical, by the same manufacturer.
D. Products shall be suitable for service conditions.
E. Equipment capacities, sizes, and dimensions shown or specified shall be adhered to unless variations are specifically approved in writing.
F. Do not use material or equipment for any purpose other than that for which it is designed or is specified.
G. Except as specifically indicated or specified, materials and equipment removed from the existing structure shall not be used in the completed work.
H. When contract documents require that installation of work shall comply with manufacturer's printed instructions, obtain and distribute copies of such instructions to parties involved in the installation, including two copies to the contracting officer.

1. Maintain one set of complete instructions at the job site during installation and until completion.
2. Handle, install, connect, clean, condition, and adjust products in accordance with such instructions and in conformity with specified requirements.
3. Should job conditions or specified requirements conflict with manufacturer's

instructions, consult with the contracting officer for further instructions.

4. Do not proceed with work without clear instructions. Perform work in accordance with manufacturer's instructions. Do not omit any preparatory step or installation procedure unless specifically modified or exempted by contract documents.
5. Provide equipment and personnel to handle products by methods to prevent soiling or damage to products or packaging.
6. Store products in accordance with manufacturer's instructions, with seals and labels intact and legible.
7. Store products subject to damage by the elements in weather-tight enclosures.
8. Maintain temperature and humidity within the ranges required by manufacturer's instructions.
9. Store fabricated products above the ground, on blocking or skids; prevent soiling or staining; cover products, which are subject to deterioration with impervious sheet coverings; and provide adequate ventilation to avoid condensation.
10. Store loose granular materials in a well-drained area on solid surfaces to prevent mixing with foreign matter.
11. Arrange storage in a manner to provide easy access for inspection. Make periodic inspections of stored products to assure that products are maintained under specified conditions and free from damage or deterioration.
12. Provide substantial coverings as necessary to protect installed products from damage from traffic and subsequent construction operations. Remove when no longer needed.
13. Provide construction products containing recycled materials that meet or exceed U.S. EPA's recycled content recommendation for EPA-designated products. The products can be viewed in Comprehensive Procurement Guidelines at www.epa.cpg.
14. Provide energy-efficient products that are ENERGY STAR® qualified or meet energy efficiency specification set by the Department of Energy's Federal Energy Management Program (FEMP). ENERGY STAR® and FEMP products can be found at: http://www.energystar.gov/products and http://www.eere.energy.gov/femp/procurement/.

H.18 POSTING AT WORK SITE

Upon commencement of work under this contract, the contractor shall post a conspicuously located sign at the entrance of each work site. The following information is required to be posted:

Name of Prime contractor
Name of Prime contractor's on-site Supervisor
Name of Contracting Officer's Representative (COR)
Title of Work

H.19 BOND REQUIREMENTS

A. If the successful bidder upon acceptance of its offer by the Government within the period specified for acceptance fails to execute all contractual documents or give a bond(s) as required by the solicitation within the time specified, the Contracting Officer may

terminate the contract for default.

B. Unless otherwise specified in the offer, the bidder will, (1) allow sixty (60) calendar days for acceptance of its offer and (2) give bond within ten (10) calendar days after receipt of the forms by the Offeror.
C. In the event the contract is terminated for default, the bidder is liable for any cost of acquiring the work that exceeds the amount of its offer, and the bid guarantee is available to offset the difference.
D. When required to submit additional bond coverage, the Contractor shall submit a Consent of Surety and Increase of Penalty, SF 1415 in accordance with FAR 28.106-3.

Bid Guarantee: A bid guarantee shall be required whenever a performance bond or a performance and payment bond is required.

Performance Bond: The Contractor shall furnish the Contracting Officer within ten (10) calendar days after award a "Performance Bond" (SF-25) for 10% of the amount of the contract.

Payment Bond: The Contractor shall furnish to the Contracting Officer within ten (10) calendar days after award a "Payment Bond" (SF-25A), for 10% of the amount of the contract.

H.20 WAGE DETERMINATION

The contract shall include a wage determination General Decision which shall be applicable to all work awarded against the contract.

H.21 RESTRICTION ON USE OF GOVERNMENT RELATED DATA

A. The Contractor shall not use or duplicate any contract-related data belonging to or supplied by the BEP, other than in the normal performance or services under this contract or the explicit written direction of the Administrative Contracting Officer (ACO). The Contractor agrees that he will not divulge to any person other than contract personnel or the COR, of the findings resulting from the work performed herein.
B. The Contractor shall return all materials and work papers collected to perform the analysis upon completion of the contract to the COR. No copies are to be retained under any circumstances by the Contractor.

H.22 INCIDENCES

If there are any incidences of fire, accidents, or release of hazardous materials/wastes affecting personnel or the Plant, the Contractor shall follow and carry out the guidance, requirements and agreements that may be entered into with local fire, safety, environmental, or health officials. The Contractor shall provide or assist in the preparation of reports and investigations of incidences.

The Bureau requires the contractor to report all accidents/incidents that occur on Bureau premises requiring his/her employee to see a doctor or results in property damage more than $300. The contractor should report the accident/injury to the COR who is responsible for

notifying the Safety and Health Management Division. All fires should be reported to the appropriate Police Operations Center either by the contractor, the COR, or the Construction Coordinator.

H.23 PERFORMANCE OF WORK

The contractor shall proceed diligently with the performance of the work, pending resolution of any request for relief, claim, appeal, or action relating to the Contract, and comply with the decision of the Contracting Officer. All appeals and claims will be processed in accordance with the "Disputes" clause of the Contract, FAR 52.233-1.

H.24 STATUS OF PERFORMANCE

During the life of the Contract should any incident occur which the Contractor believes may circumvent or encumber the performance of this Contract, the contractor shall immediately notify the CO. The receipt of such a notice shall not be construed as a waiver by the BEP of any of its rights and remedies provided by law or under the terms of this Contract.
PROGRESS MEETINGS

Progress meetings shall be held weekly unless stated otherwise in the contract. The project manager representing the Contracting Officer shall attend progress meetings. Technical supervisor (foreman), sub-contractors, suppliers, etc. shall attend when requested by the Contracting Officer.

H.25 WITHHOLDING OF CONTRACT PAYMENTS

Notwithstanding any other payment provisions of this Contract, failure of the Contractor to perform under the terms of this Contract will result in the withholding of payments by the BEP unless such failure arises out of causes beyond the control, and without the fault or negligence of the Contractor, as defined in FAR Clauses 52.249-2 “Termination for the Convenience of the Government (Fixed Price)” and FAR Clause 52.249-14 “Excusable Delays”.

The Contracting Officer shall provide the Contractor with written notification of the Contractor’s failure to perform within seven (7) calendar days of the occurrence of the failure. The written notification shall provide specific details of the Contractor’s failure. The Contractor shall have five (5) calendar days, or as mutually extended by the BEP and the Contractor, form receipt of the written notification to cure the deficiency. Withholding of payment will not occur until a final decision is rendered by the Contracting Officer.

H.26 INSURANCE

A. The Contractor, at his/her own expense, shall maintain during the entire performance period of this contract, insurance of the following kinds and minimum amounts as set forth below.

TYPE OF INSURANCE	AMOUNT
Workmen's Compensation & Employer's Liability Insurance	$100,000.00
General Liability Insurance	$500,000.00 per occurrence
Automobile Liability Insurance	$200,000.00 per person $500,000.00 per occurrence bodily injury $200,000 per occurrence
Property Damage	$1,000,000.00 per occurrence

B. Within ten (10) calendar days after receipt of NOTICE OF AWARD, the contractor shall furnish to the Contracting Officer a certificate or written statement of the above required insurance. Cancellation or any material change in the policies adversely affecting the interests of the Government in such insurance shall not be effective until ten (10) days after written notice thereof to the Contracting Officer.

C. The Contractor agrees to insert the substance of this clause in all subcontracts hereunder.

H.27 DAVIS-BACON WAGE DETERMINATIONS

The Contractor shall pay wages in accordance with the Davis-Bacon wage determinations. Wage determinations will be incorporated into the base contract, and if option periods are exercised, new documentation will be incorporated into the contract. The incorporation of new wage determinations shall not be a basis for renegotiations of the contract coefficients.

H.28 WORK BY THE GOVERNMENT

The Government reserves the right to undertake performance by Government forces or other contractors, for the same type or similar work as contracted for herein, as the Government deems necessary or desirable, and to do so will not breach or otherwise violate this contract.

H.29 CONTRACTOR KEY PERSONNEL & STAFF

The Project Manager and/or Supervisor/Foreman shall be pre-approved by the Contracting Officer prior to award. The contractor shall not change the Project Manager and/or Supervisor without the Contracting Officers approval.

At any time during performance under this contract, the Contractor shall make no substitutions of key personnel unless notification to the CO is received within five (5) calendar days after the occurrence of any of these events. The contractor shall provide a detailed explanation of the circumstances necessitating the proposed substitutions, complete resumes for the proposed substitutes, and any additional information requested by the Contracting Officer. Proposed substitutions should have comparable qualification to those of the persons being replaced. The

contract will be modified to reflect any approved changes in key personnel.

The Contractor shall submit a personnel list to the Contracting Officer no later than two (2) days after receipt of NOTICE TO PROCEED. The individual designated as the project manager shall have full authority to act for the Contractor.

H.30 SUBCONTRACTORS

The contractor shall submit a list of subcontractors to be used. The Government may unilaterally reject the use of certain subcontractors if they have been debarred from Federal procurements or if their past performance is not satisfactory.

The contractor shall be responsible for the management and performance of all subcontracts. The contractor shall ensure subcontractors are competent and capable of handling all assigned work. The contractor shall ensure work are completed within the stated requirements.

H.31 COMMENCEMENT OF WORK

No work under this contract will commence until such time as the Contracting Officer issues a Notice to Proceed in writing.

H.32 SCHEDULING OF WORK/COMMUNICATIONS

Before commencement of work, the contractor shall confer with the COR, and agree on items including, but not limited to: (1) sequence of procedures; (2) means of access to premises and building; (3) delivery of materials; and (4) storage of materials and equipment.

The work shall, so far as practicable, be done in definite sections or division, and confined to limited areas which shall be completed before work in other sections or divisions is begun. Therefore, the contractor shall provide a schedule on contract milestones that the Government will approve prior to beginning any given project.

At the beginning of each working day, the contractor shall notify the COR of the location(s) where work is to be performed for that day.

The contractor shall provide the Contracting Officer and the COR with the name, telephone number, pager number and cell number of the person who should be contacted in case of emergencies. This individual shall have the authority to enter into binding agreements with the Government.

H.33 STATUS REPORTS

The Contractor shall prepare and furnish monthly a report. Information contained in the status report shall identify the contract number, description, dollar amount, required completion date, actual completion date (if completed), actual percent of work completed versus percent that was scheduled to be completed at that time.

H.34 CHANGES

The Contractor shall not perform any of contingent work, until the Contracting Officer issues a contract modification authorizing performance of work in accordance with FAR Clause 52.243-4, Changes.

The Contractor shall promptly notify the Contracting Officer, in writing, of subsurface or any physical conditions from those indicated in this contract or unknown physical conditions at the site before proceeding with the work.

The change orders request shall be forwarded to the Contracting Officer by memorandum outlining the need and a justification for the change order. Upon receipt of a change order request, the Contracting Officer will request a cost proposal from the Contractor. All cost proposals shall be in detail and itemized, showing price breakdown in sufficient detail to permit an analysis of cost for material, labor, equipment, hours, taxes, insurance, bonds, overhead costs, profit, and complete description of work involved in the change order, including any time extension.

In an emergency situation, a telephone approval may be granted by the Contracting Officer, and immediately the Contractor shall follow through by submitting a written cost proposal to the Contracting Officer. The Contracting Officer will issue a contract modification to authorize the work for the "emergency".

H.35 MODIFICATION PROPOSAL - COST BREAKDOWN

The contract may ONLY be modified by the Contracting Officer. Modifications will be issued on a Standard Form (SF) 30.

The Contractor, in connection with any proposal he makes for a contract modification, shall furnish a price breakdown, itemized as required by the Contracting Officer (CO). Unless otherwise directed, the breakdown shall be in sufficient detail to permit an analysis of all material, labor, equipment, subcontract, and overhead costs, as well as profit, and shall cover all work involved in the modification, whether such work was deleted, added, or changed. Any amount claimed for subcontractors shall be supported by a similar price breakdown. In addition, if the proposal includes a time extension, a justification thereof shall also be furnished. The proposal, together with the price breakdown and time extension justification, shall be furnished by the date specified by the Contracting Officer.

H.36 LIQUIDATED DAMAGES

In applying the liquidated damages, no building or facility unit shall be considered complete unless all utilities are available for normal use, and the structure is accessible by normal traffic. Liquidated damages (as prescribed in Section I, Clause 52.211-12, Liquidated Damages-Construction) will be assessed in accordance with the amount identified for each calendar day of delay beyond the time of completion stated in the contract, or any extension thereof that may be

granted pursuant to the terms of the GENERAL PROVISIONS, until the work is determined by the Contracting Officer to be substantially completed.

H.37 PERFORMANCE EVALUATIONS

At the conclusion of contract the Administrative Contracting Office will complete a Contractor's performance evaluation on Standard Form (SF) 1421 for contract actions over $550K or at the discretion of the Contracting Officer if less the $550K. The evaluation will take into account all aspects of the Contractor's Performance. Performance evaluations may be completed at any time the Contractor's performance is considered less than satisfactory. Contractors will be provided the performance evaluation and an opportunity to comment on the evaluation. The performance evaluations may have an impact on the contracts.

H.38 FINAL INSPECTION, SUBSTANTIAL COMPLETION, AND ACCEPTANCE OF COMPLETED WORK

Final inspection will be made by the Contracting Officer when requested and when the Contractor advises that all the materials have been furnished, all the work has been performed, and all the construction provided for by the contract has been completed in accordance with its terms. The Contractor shall be ready for final inspection in order that necessary arrangements can be made. If a minor portion of the materials to be furnished or work to be done or construction provided for by the Contractor has not been completed at time of final inspection, the work under the contract may be determined to be substantially complete and the Contractor advised by the Contracting Officer in writing of the date on which the work is determined to be substantially complete. On the date when all materials, work, or other requirements of the drawings, specifications, and contract are furnished or completed, acceptance will be given by the Contracting Officer. The Contractor will be advised in writing of the date the work is determined to be completed and accepted, thereby relieving the Contractor of further responsibility for that unit of the work, and until such acceptance the Contractor will be responsible for all work performed and materials delivered as provided in FAR Clause 52.236-7, Permits and Responsibilities.

H.38 AS-BUILT DRAWINGS

Upon completion of work, the Contractor shall furnish one set of "As-Built" drawings. These drawings shall be contract drawings corrected in red ink to show any differences between contract drawings and actual construction for all buildings and structures, site improvements, and underground and aboveground utility lines (gas, oil, water, steam, sewer, storm sewer, electrical power, electrical control, fire alarm, and cathodic protection systems). All changes made during construction shall be noted. All new utility lines shall be accurately located noting, as applicable, depth of burial, size, direction, points of changes in size and direction, and dimensions to new and existing permanent structures. For any existing underground lines encountered during construction, show, as applicable, type of service, size, location (as noted for new lines above). Provide sketches and details where necessary to more fully describe the work performed. Each drawing showing changes in dimension details or containing supplemental information shall be plainly marked "As-Built," and shall contain the signatures of both the Government Project Inspector and the Contractor.

H.39 CONTRACT CLOSE-OUT

In addition to specific requirements the following are Contract closeout procedures for all against this contract:

Correct all punch list items. Clean all glass; replace all broken glass; remove stains, spots, marks, and dirt; clean hardware; remove paint spots and smears from all surfaces; clean fixtures; wash all concrete and tile; and vacuum the floor.

Obtains, assembles, and submits to the owner three manuals containing comprehensive operating and maintenance instructions and parts lists. Each manual shall be self-contained and include information for efficient servicing of equipment supplied and installed under the contract. Operating instructions shall explain maintenance procedures, methods of checking the systems for safe and normal operation, and the recommended procedure for safely stopping and starting the equipment and/or systems.

These requirements shall be fulfilled before any guarantee periods become effective so as to limit the possibility of claims arising from the absence of pertinent information.
Spare parts and maintenance materials required by this contract, documents should be delivered to owner as directed by owner.

List of manufacturers and suppliers: At the conclusion of the project, the contractor shall furnish the contracting officer with a complete list of subcontractors, manufacturers, and suppliers who participated in the construction or who furnished materials of equipment. The address of each firm shall be included, together with types of materials or work performed.
Bureau's Asbestos Abatement Contractor through OESOH prior to demolition. Should the suspected ACM be encountered during demolition, the COR should be contacted immediately, who will in turn contact OESOH.

The contractor shall take precautions to eliminate or reduce employee exposure to toxic substances, excessive noise, dust or other conditions that may result from the contractor's work. In the event the contractor cannot reduce the exposure, the COR may require the rescheduling of work during a time when the area is not fully operating.

(END OF SECTION H)

SECTION I – PROVISIONS AND CLAUSES

The following provisions are incorporated by reference:

52.203-18	Prohibition on Contracting With Entities That Require Certain Internal Confidentiality Agreements or Statements—Representation	JAN 2017
52.204-7	System for Award Management	OCT 2018
52.204-16	Commercial and Government Entity Code Reporting	AUG 2020
52.204-22	Alternative Line Item Proposal	JAN 2017
52.215-1	Instructions to Offerors--Competitive Acquisition	NOV 2021
52.216-27	Single or Multiple Awards	OCT 1995
52.223-4	Recovered Material Certification	MAY 2008
52.232-13	Notice Of Progress Payments	APR 1984
52.236-28	Preparation of Proposals--Construction	OCT 1997

The following are provisions incorporated by full text:

52.204-24 Representation Regarding Certain Telecommunications and Video Surveillance Services or Equipment. (Nov 2021)

The Offeror shall not complete the representation at paragraph (d)(1) of this provision if the Offeror has represented that it "does not provide covered telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument" in paragraph (c)(1) in the provision at 52.204-26, Covered Telecommunications Equipment or Services—Representation, or in paragraph (v)(2)(i) of the provision at 52.212-3, Offeror Representations and Certifications-Commercial Products or Commercial Services. The Offeror shall not complete the representation in paragraph (d)(2) of this provision if the Offeror has represented that it "does not use covered telecommunications equipment or services, or any equipment, system, or service that uses covered telecommunications equipment or services" in paragraph (c)(2) of the provision at 52.204-26, or in paragraph (v)(2)(ii) of the provision at 52.212-3.

(a) *Definitions.* As used in this provision—

Backhaul, covered telecommunications equipment or services, critical technology, interconnection arrangements, reasonable inquiry, roaming, and substantial or essential component have the meanings provided in the clause 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video

Surveillance Services or Equipment.

(b) *Prohibition*.

(1) Section 889(a)(1)(A) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232) prohibits the head of an executive agency on or after August 13, 2019, from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system. Nothing in the prohibition shall be construed to—

(i) Prohibit the head of an executive agency from procuring with an entity to provide a service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

(ii) Cover telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

Section 889(a)(1)(B) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232) prohibits the head of an executive agency on or after August 13, 2020, from entering into a contract or extending or renewing a contract with an entity that uses any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system. This prohibition applies to the use of covered telecommunications equipment or services, regardless of whether that use is in performance of work under a Federal contract. Nothing in the prohibition shall be construed to—

(iii) Prohibit the head of an executive agency from procuring with an entity to provide a service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

(iv) Cover telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(c) *Procedures.* The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (https://www.sam.gov) for entities excluded from receiving federal awards for "covered telecommunications equipment or services".

(d) *Representation.* The Offeror represents that—

(1) It □ will, □ will not provide covered telecommunications equipment or services to the Government in the performance of any contract, subcontract or other contractual instrument resulting from this solicitation. The Offeror shall provide the additional disclosure information required at paragraph (e)(1) of this section if the Offeror responds "will" in paragraph (d)(1) of this section; and

(2) After conducting a reasonable inquiry, for purposes of this representation, the Offeror represents that—

It □ does, □ does not use covered telecommunications equipment or services, or use any equipment, system, or service that uses covered telecommunications equipment or services. The Offeror shall provide the additional disclosure information required at paragraph (e)(2) of this section if the Offeror responds "does" in paragraph (d)(2) of this section.

(e) *Disclosures.*

(1) Disclosure for the representation in paragraph (d)(1) of this provision. If the Offeror has responded "will" in the representation in paragraph (d)(1) of this provision, the Offeror shall provide

the following information as part of the offer:

(i) For covered equipment—

(A) The entity that produced the covered telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the original equipment manufacturer (OEM) or a distributor, if known);

(B) A description of all covered telecommunications equipment offered (include brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); and

(C) Explanation of the proposed use of covered telecommunications equipment and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(1) of this provision.

(ii) For covered services—

(A) If the service is related to item maintenance: A description of all covered telecommunications services offered (include on the item being maintained: Brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); or

(B) If not associated with maintenance, the Product Service Code (PSC) of the service being provided; and explanation of the proposed use of covered telecommunications services and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(1) of this provision.

(2) Disclosure for the representation in paragraph (d)(2) of this provision. If the Offeror has responded "does" in the representation in paragraph (d)(2) of this provision, the Offeror shall provide the following information as part of the offer:

(i) For covered equipment—

(A) The entity that produced the covered telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the OEM or a distributor, if known);

(B) A description of all covered telecommunications equipment offered (include brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); and

(C) Explanation of the proposed use of covered telecommunications equipment and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(2) of this provision.

(ii) For covered services—

(A) If the service is related to item maintenance: A description of all covered telecommunications services offered (include on the item being maintained: Brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); or

(B) If not associated with maintenance, the PSC of the service being provided; and explanation of the proposed use of covered telecommunications services and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(2) of this provision.

(End of provision)

52.204-26 Covered Telecommunications Equipment or Services-Representation. (Oct 2020)

(a) *Definitions.* As used in this provision, "covered telecommunications equipment or

services" and "reasonable inquiry" have the meaning provided in the clause 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

(b) *Procedures.* The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (https://www.sam.gov) for entities excluded from receiving federal awards for "covered telecommunications equipment or services".

(c)

(1) *Representation.* The Offeror represents that it □ does, □ does not provide covered telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument.

(2) After conducting a reasonable inquiry for purposes of this representation, the offeror represents that it □ does, □ does not use covered telecommunications equipment or services, or any equipment, system, or service that uses covered telecommunications equipment or services. (End of provision)

52.222-5 CONSTRUCTION WAGE RATE REQUIREMENTS--SECONDARY SITE OF THE WORK (MAY 2014)

(a)(1) The offeror shall notify the Government if the offeror intends to perform work at any secondary site of the work, as defined in paragraph (a)(1)(ii) of the FAR clause at 52.222-6, Construction Wage Rate Requirements of this solicitation.

(2) If the offeror is unsure if a planned work site satisfies the criteria for a secondary site of the work, the offeror shall request a determination from the Contracting Officer.

(b)(1) If the wage determination provided by the Government for work at the primary site of the work is not applicable to the secondary site of the work, the offeror shall request a wage determination from the Contracting Officer.

(a) The due date for receipt of offers will not be extended as a result of an offeror's request for a wage determination for a secondary site of the work.

(End of provision)

52.222-23 NOTICE OF REQUIREMENT FOR AFFIRMATIVE ACTION TO ENSURE EQUAL EMPLOYMENT OPPORTUNITY FOR CONSTRUCTION (FEB 1999)

(a) The offeror's attention is called to the Equal Opportunity clause and the Affirmative Action Compliance Requirements for Construction clause of this solicitation.

(b) The goals for minority and female participation, expressed in percentage terms for the Contractor's aggregate workforce in each trade on all construction work in the covered area, are as follows:

Goals for minority participation for each	Goals for female participation for each
18.2%	6.9%

These goals are applicable to all the Contractor's construction work performed in the covered area. If the Contractor performs construction work in a geographical area located outside of the covered area, the Contractor shall apply the goals established for the geographical area where the work is actually performed. Goals are published periodically in the Federal Register in notice form, and these notices may be obtained from any Office of Federal Contract Compliance Programs office.

(c) The Contractor's compliance with Executive Order 11246, as amended, and the regulations in 41 CFR 60-4 shall be based on (1) its implementation of the Equal Opportunity clause, (2) specific affirmative action obligations required by the clause entitled "Affirmative Action Compliance Requirements for Construction," and its efforts to meet the goals. The hours of minority and female employment and training must be substantially uniform throughout the length of the contract, and in each trade. The Contractor shall make a good faith effort to employ minorities and women evenly on each of its projects. The transfer of minority or female employees or trainees from Contractor to Contractor, or from project to project, for the sole purpose of meeting the Contractor's goals shall be a violation of the contract, Executive Order 11246, as amended, and the regulations in 41 CFR 60-4. Compliance with the goals will be measured against the total work hours performed.

(d) The Contractor shall provide written notification to the Deputy Assistant Secretary for Federal Contract Compliance, U.S. Department of Labor, within 10 working days following award of any construction subcontract in excess of $10,000 at any tier for construction work under the contract resulting from this solicitation. The notification shall list the --

- Name, address, and telephone number of the subcontractor;
- Employer's identification number of the subcontractor;
- Estimated dollar amount of the subcontract;
- Estimated starting and completion dates of the subcontract; and
- Geographical area in which the subcontract is to be performed.
- As used in this Notice, and in any contract resulting from this solicitation, the "covered area" is the District of Columbia.
- These goals will be incorporated at the task order level.

(End of provision)

52.225-12 NOTICE OF BUY AMERICAN REQUIREMENT-- CONSTRUCTION MATERIALS UNDER TRADE AGREEMENTS (MAY 2014)

a. Definitions. “Commercially available off-the-shelf (COTS) item,” “construction material,” “designated country construction material,” “domestic construction material,” and “foreign construction material,” as used in this provision, are defined in the clause of this solicitation entitled “Buy American -- Construction Materials Under Trade Agreements” (Federal Acquisition Regulation (FAR) clause 52.225-11).

b. Requests for determination of inapplicability. An offeror requesting a determination regarding the

inapplicability of the Buy American statute should submit the request to the Contracting Officer in time to allow a determination before submission of offers. The offeror shall include the information and applicable supporting data required by paragraphs (c) and (d) of FAR clause 52.225-11 in the request. If an offeror has not requested a determination regarding the inapplicability of the Buy American statute before submitting its offer, or has not received a response to a previous request, the offeror shall include the information and supporting data in the offer.

c. Evaluation of offers. (1) The Government will evaluate an offer requesting exception to the requirements of the Buy American statute, based on claimed unreasonable cost of domestic construction materials, by adding to the offered price the appropriate percentage of the cost of such foreign construction material, as specified in paragraph (b)(4)(i) of FAR clause 52.225- 11.

(2) If evaluation results in a tie between an offeror that requested the substitution of foreign construction material based on unreasonable cost and an offeror that did not request an exception, the Contracting Officer will award to the offeror that did not request an exception based on unreasonable cost.
d. Alternate offers. (1) When an offer includes foreign construction material, other than designated country construction material, that is not listed by the Government in this solicitation in paragraph (b)(3) of FAR clause 52.225-11, the offeror also may submit an alternate offer based on use of equivalent domestic or designated country construction material.

(2) If an alternate offer is submitted, the offeror shall submit a separate Standard Form 1442 for the alternate offer, and a separate price comparison table prepared in accordance with paragraphs (c) and (d) of FAR clause 52.225-11 for the offer that is based on the use of any foreign construction material for which the Government has not yet determined an exception applies.

(3) If the Government determines that a particular exception requested in accordance with paragraph (c) of FAR clause 52.225-11 does not apply, the Government will evaluate only those offers based on use of the equivalent domestic or designated country construction material, and the offeror shall be required to furnish such domestic or designated country construction material. An offer based on use of the foreign construction material for which an exception was requested-- (i) Will be rejected as nonresponsive if this acquisition is conducted by sealed bidding; or
(ii) May be accepted if revised during negotiations. (End of provision)

52.252-1 SOLICITATION PROVISIONS INCORPORATED BY REFERENCE (FEB 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this address(es):
https://www.acquisition.gov/

(End of provision)

The following clauses are incorporated by reference:

Clause	Title	Date
52.202-1	Definitions	JUN 2020
52.203-3	Gratuities	APR 1984
52.203-5	Covenant Against Contingent Fees	MAY 2014
52.203-7	Anti-Kickback Procedures	JUN 2020
52.203-8	Cancellation, Rescission, and Recovery of Funds for Illegal or Improper Activity	MAY 2014
52.203-10	Price Or Fee Adjustment For Illegal Or Improper Activity	MAY 2014
52.203-12	Limitation On Payments To Influence Certain Federal Transactions	JUN 2020
52.203-13	Contractor Code of Business Ethics and Conduct	NOV 2021
52.203-16	Preventing Personal Conflicts of Interest	JUN 2020
52.203-17	Contractor Employee Whistleblower Rights and Requirement To Inform Employees of Whistleblower Rights	NOV 2023
52.203-19	Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements	JAN 2017
52.204-2	Security Requirements	MAR 2021
52.204-2 Alt II	Security Requirements (Aug 1996) - Alternate II	APR 1984
52.204-4	Printed or Copied Double-Sided on Postconsumer Fiber Content Paper	MAY 2011
52.204-9	Personal Identity Verification of Contractor Personnel	JAN 2011
52.204-10	Reporting Executive Compensation and First-Tier Subcontract Awards	JUN 2020
52.204-12	Unique Entity Identifier Maintenance	OCT 2016
52.204-13	System for Award Management Maintenance	OCT 2018
52.204-14	Service Contract Reporting Requirements	OCT 2016
52.204-18	Commercial and Government Entity Code Maintenance	AUG 2020

52.204-23	Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab Covered Entities	DEC 2023
52.204-25	Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment	NOV 2021
52.204-27	Prohibition on a ByteDance Covered Application	JUN 2023
52.209-6	Protecting the Government's Interest When Subcontracting With Contractors Debarred, Suspended, or Proposed for Debarment	NOV 2021
52.209-9	Updates of Publicly Available Information Regarding Responsibility	OCT 2018
52.209-10	Prohibition on Contracting With Inverted Domestic Corporations	NOV 2015
52.215-12	Subcontractor Certified Cost or Pricing Data (ALT I OCT 2025)	JUN 2020
52.215-17	Subcontractor Certified Cost or Pricing Data - Modifications	JUN 2020
52.215-18	Reversion or Adjustment of Plans for Postretirement Benefits (PRB) Other than Pensions	JUL 2005
52.215-19	Notification of Ownership Changes	OCT 1997
52.215-17	Waiver of Facilities Capital Cost of Money	OCT 1997
52.219-6 (Dev)	Notice of Total Small Business Set-Aside (Deviation 2019-O0003)	NOV 2020
52.219-8	Utilization of Small Business Concerns	FEB 2024
52.219-14	Limitations on Subcontracting (Deviation 2019-O0003)	OCT 2022
52.219-28	Post-Award Small Business Program Representation	JAN 2025
52.222-1	Notice To The Government Of Labor Disputes	FEB 1997
52.222-3	Convict Labor	JUN 2003
52.222-4	Contract Work Hours and Safety Standards - Overtime Compensation	MAY 2018
52.222-6	Construction Wage Rate Requirements	AUG 2018
52.222-7	Withholding of Funds	MAY 2014
52.222-8	Payrolls and Basic Records	JUL 2021
52.222-10	Compliance with Copeland Act Requirements	FEB 1988
52.222-11	Subcontracts (Labor Standards)	MAY 2014
52.222-12	Contract Termination – Debarment	MAY 2014
52.222-13	Compliance with Construction Wage Rate Requirements and Related Regulations	MAY 2014
52.222-14	Disputes Concerning Labor Standards	FEB 1988
52.222-15	Certification of Eligibility	MAY 2014
52.222-36	Equal Opportunity For Workers with Disabilities	JUN 2020

52.222-50	Combating Trafficking in Persons	NOV 2021
52.222-55	Minimum Wages for Contractor Workers Under Executive Order 14026	JAN 2022
52.222-62	Paid Sick Leave Under Executive Order 13706	JAN 2022
52.223-2	Reporting of Biobased Products Under Service and Construction Contracts	MAY 2024
52.223-5	Pollution Prevention and Right-to-Know Information	MAY 2024
52.223-11	Ozone-Depleting Substances and High Global Warming Potential Hydrofluorocarbons	MAY 2024
52.223-20	Aerosols	MAY 2024
52.223-21	Foams	MAY 2024
52.223-23	Sustainable Products and Services (DEVIATION FEB 2025)	MAY 2024
52.225-9	Buy American—Construction Materials	OCT 2022
52.225-13	Restrictions on Certain Foreign Purchases	FEB 2021
52.226-8	Encouraging Contractor Policies to Ban Text Messaging While Driving	MAY 2024
52.227-1	Authorization and Consent	JUN 2020
52.227-2	Notice and Assistance Regarding Patent and Copyright Infringement	JUN 2020
52.227-4	Patent Indemnity-Construction Contracts	DEC 2007
52.228-2	Additional Bond Security	OCT 1997
52.228-11	Individual Surety – Pledges of Assets	FEB 2021
52.228-12	Prospective Subcontractor Requests for Bonds	DEC 2022
52.228-13	Alternative Payment Protections	JUL 2000
52.228-14	Irrevocable Letter of Credit	NOV 2014
52.232-5	Payments Under Fixed-Price Construction Contracts	MAY 2014
52.232-18	Availability of Funds	APR 1984
52.232-23	Assignment of Claims	MAY 2014
52.232-27	Prompt Payment for Construction Contracts	JAN 2017
52.232-33	Payment by Electronic Funds Transfer—System for Award Management	OCT 2018
52.232-39	Clause for unenforceability of unauthorized obligations	JUN 2013
52.232-40	Providing Accelerated Payments to Small Business Subcontractors	MAR 2023
52.233-1	Disputes	MAY 2014
52.233-3	Protest After Award	AUG 1996

52.233-4	Applicable Law for Breach of Contract Claim	OCT 2004
52.236-2	Differing Site Conditions	APR 1984
52.236-3	Site Investigation and Conditions Affecting the Work	APR 1984
52.236-5	Material and Workmanship	APR 1984
52.236-6	Superintendence By the Contractor	APR 1984
52.236-7	PERMITS AND RESPONSIBILITIES	NOV 1991
52.236-8	Other Contracts	APR 1984
52.236-9	Protection of Existing Vegetation, Structures, Equipment, Utilities, and Improvements	APR 1984
52.236-10	Operations and Storage Areas	APR 1984
52.236-11	Use and Possession Prior to Completion	APR 1984
52.236-12	Cleaning Up	APR 1984
52.236-13	Accident Prevention	NOV 1991
52.236-14	Availability and Use of Utility Services	APR 1984
52.236-17	Layout of Work	APR 1984
52.236-21	Specifications and Drawings for Construction	FEB 1997
52.236-26	Preconstruction Conference	FEB 1995
52.240-1	Prohibition on Unmanned Aircraft Systems Manufactured or Assembled by American Security Drone Act-Covered Foreign Entities	NOV 2024
52.243-5	Changes and Changed Conditions	APR 1984
52.244-6	Subcontracts for Commercial Products and Commercial Services (DEVIATION FEB 2025)	JAN 2025
52.246-21	Warranty of Construction	MAR 1994
52.249-10	Default (Fixed-Price Construction)	APR 1984

The following clauses are provided in full text:

52.204-19 INCORPORATION BY REFERENCE OF REPRESENTATIONS AND CERTIFICATIONS (DEC 2014)

The Contractor's representations and certifications, including those completed electronically via the System for Award Management (SAM), are incorporated by reference into the contract.

(End of Clause)

52.204-21 BASIC SAFEGUARDING OF COVERED CONTRACTOR INFORMATION SYSTEMS. (Nov 2021)

Definitions. As used in this clause—
Covered contractor information system means an information system that is owned or operated

by a contractor that processes, stores, or transmits Federal contract information.
Federal contract information means information, not intended for public release, that is provided by or generated for the Government under a contract to develop or deliver a product or service to the Government, but not including information provided by the Government to the public (such as on public websites) or simple transactional information, such as necessary to process payments.
Information means any communication or representation of knowledge such as facts, data, or opinions, in any medium or form, including textual, numerical, graphic, cartographic, narrative, or audiovisual (Committee on National Security Systems Instruction (CNSSI) 4009).
Information system means a discrete set of information resources organized for the collection, processing, maintenance, use, sharing, dissemination, or disposition of information (44 U.S.C. 3502).
Safeguarding means measures or controls that are prescribed to protect information systems.
Safeguarding requirements and procedures.
The Contractor shall apply the following basic safeguarding requirements and procedures to protect covered contractor information systems. Requirements and procedures for basic safeguarding of covered contractor information systems shall include, at a minimum, the following security controls:
Limit information system access to authorized users, processes acting on behalf of authorized users, or devices (including other information systems).
Limit information system access to the types of transactions and functions that authorized users are permitted to execute.
Verify and control/limit connections to and use of external information systems.
Control information posted or processed on publicly accessible information systems.
Identify information system users, processes acting on behalf of users, or devices.
Authenticate (or verify) the identities of those users, processes, or devices, as a prerequisite to allowing access to organizational information systems.
Sanitize or destroy information system media containing Federal Contract Information before disposal or release for reuse.
Limit physical access to organizational information systems, equipment, and the respective operating environments to authorized individuals.
Escort visitors and monitor visitor activity; maintain audit logs of physical access; and control and manage physical access devices.
Monitor, control, and protect organizational communications (i.e., information transmitted or received by organizational information systems) at the external boundaries and key internal boundaries of the information systems.
Implement subnetworks for publicly accessible system components that are physically or logically separated from internal networks.
Identify, report, and correct information and information system flaws in a timely manner.
Provide protection from malicious code at appropriate locations within organizational information systems.
Update malicious code protection mechanisms when new releases are available.
Perform periodic scans of the information system and real-time scans of files from external sources as files are downloaded, opened, or executed.

Other requirements. This clause does not relieve the Contractor of any other specific safeguarding requirements specified by Federal agencies and departments relating to covered contractor information systems generally or other Federal safeguarding requirements for controlled unclassified information (CUI) as established by Executive Order 13556.
Subcontracts. The Contractor shall include the substance of this clause, including this paragraph (c), in subcontracts under this contract (including subcontracts for the acquisition of commercial products or commercial services, other than commercially available off-the-shelf items), in which the subcontractor may have Federal contract information residing in or transiting through its information system.
(End of Clause)

52.204-25 PROHIBITION ON CONTRACTING FOR CERTAIN TELECOMMUNICATIONS AND VIDEO SURVEILLANCE SERVICES OR EQUIPMENT. (Nov 2021)

(a) Definitions. As used in this clause—
Backhaul means intermediate links between the core network, or backbone network, and the small subnetworks at the edge of the network (e.g., connecting cell phones/towers to the core telephone network). Backhaul can be wireless (e.g., microwave) or wired (e.g., fiber optic, coaxial cable, Ethernet).
Covered foreign country means The People's Republic of China.
Covered telecommunications equipment or services means–
(1) Telecommunications equipment produced by Huawei Technologies Company or ZTE Corporation (or any subsidiary or affiliate of such entities);
(2) For the purpose of public safety, security of Government facilities, physical security surveillance of critical infrastructure, and other national security purposes, video surveillance and telecommunications equipment produced by Hytera Communications Corporation, Hangzhou Hikvision Digital Technology Company, or Dahua Technology Company (or any subsidiary or affiliate of such entities);
(3) Telecommunications or video surveillance services provided by such entities or using such equipment; or
(4) Telecommunications or video surveillance equipment or services produced or provided by an entity that the Secretary of Defense, in consultation with the Director of National Intelligence or the Director of the Federal Bureau of Investigation, reasonably believes to be an entity owned or controlled by, or otherwise connected to, the government of a covered foreign country.
Critical technology means–Nuclear facilities, equipment, and material covered by part 110 of title 10, Code of Federal Regulations (relating to export and import of nuclear equipment and material);
Select agents and toxins covered by part 331 of title 7, Code of Federal Regulations, part 121 of title 9 of such Code, or part 73 of title 42 of such Code; or
Emerging and foundational technologies controlled pursuant to section 1758 of the Export Control Reform Act of 2018 (50 U.S.C. 4817).
Interconnection arrangements means arrangements governing the physical connection of two or more networks to allow the use of another's network to hand off traffic where it is ultimately delivered (e.g., connection of a customer of telephone provider A to a customer of telephone company B) or sharing data and other information resources.

(1) Defense articles or defense services included on the United States Munitions List set forth in the International Traffic in Arms Regulations under subchapter M of chapter I of title 22, Code of Federal Regulations;
(2) Items included on the Commerce Control List set forth in Supplement No. 1 to part 774 of the Export Administration Regulations under subchapter C of chapter VII of title 15, Code of Federal Regulations, and controlled-
(i) Pursuant to multilateral regimes, including for reasons relating to national security, chemical and biological weapons proliferation, nuclear nonproliferation, or missile technology; or
(ii) For reasons relating to regional stability or surreptitious listening;
(3) Specially designed and prepared nuclear equipment, parts and components, materials, software, and technology covered by part 810 of title 10, Code of Federal Regulations (relating to assistance to foreign atomic energy activities);
(4) Nuclear facilities, equipment, and material covered by part 110 of title 10, Code of Federal Regulations (relating to export and import of nuclear equipment and material);
(5) Select agents and toxins covered by part 331 of title 7, Code of Federal Regulations, part 121 of title 9 of such Code, or part 73 of title 42 of such Code; or
(6) Emerging and foundational technologies controlled pursuant to section 1758 of the Export Control Reform Act of 2018 (50 U.S.C. 4817).
Interconnection arrangements means arrangements governing the physical connection of two or more networks to allow the use of another's network to hand off traffic where it is ultimately delivered (e.g., connection of a customer of telephone provider A to a customer of telephone company B) or sharing data and other information resources.
Reasonable inquiry means an inquiry designed to uncover any information in the entity's possession about the identity of the producer or provider of covered telecommunications equipment or services used by the entity that excludes the need to include an internal or third-party audit.
Roaming means cellular communications services (e.g., voice, video, data) received from a visited network when unable to connect to the facilities of the home network either because signal coverage is too weak or because traffic is too high.
Substantial or essential component means any component necessary for the proper function or performance of a piece of equipment, system, or service.
(b) Prohibition.
(1) Section 889(a)(1)(A) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232) prohibits the head of an executive agency on or after August 13, 2019, from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system. The Contractor is prohibited from providing to the Government any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system, unless an exception at paragraph (c) of this clause applies or the covered telecommunication equipment or services are covered by a waiver described in FAR 4.2104.
(2) Section 889(a)(1)(B) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232) prohibits the head of an executive agency on or after August

13, 2020, from entering into a contract, or extending or renewing a contract, with an entity that uses any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system, unless an exception at paragraph (c) of this clause applies or the covered telecommunication equipment or services are covered by a waiver described in FAR 4.2104. This prohibition applies to the use of covered telecommunications equipment or services, regardless of whether that use is in performance of work under a Federal contract.
(c) Exceptions. This clause does not prohibit contractors from providing—
(1) A service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or
(2) Telecommunications equipment that cannot route or redirect user data traffic or permit visibility into any user data or packets that such equipment transmits or otherwise handles.
(d) Reporting requirement.

(1) In the event the Contractor identifies covered telecommunications equipment or services used as a substantial or essential component of any system, or as critical technology as part of any system, during contract performance, or the Contractor is notified of such by a subcontractor at any tier or by any other source, the Contractor shall report the information in paragraph (d)(2) of this clause to the Contracting Officer, unless elsewhere in this contract are established procedures for reporting the information; in the case of the Department of Defense, the Contractor shall report to the website at https://www.acquisition.gov. For indefinite delivery contracts, the Contractor shall report to the Contracting Officer for the indefinite delivery contract and the Contracting Officer(s) for any affected order or, in the case of the Department of Defense, identify both the indefinite delivery contract and any affected orders in the report provided
at https://www.acquisition.gov.
(2) The Contractor shall report the following information pursuant to paragraph (d)(1) of this clause
(i) Within one business day from the date of such identification or notification: the contract number; the order number(s), if applicable; supplier name; supplier unique entity identifier (if known); supplier Commercial and Government Entity (CAGE) code (if known); brand; model number (original equipment manufacturer number, manufacturer part number, or wholesaler number); item description; and any readily available information about mitigation actions undertaken or recommended.
(ii) Within 10 business days of submitting the information in paragraph (d)(2)(i) of this clause: any further available information about mitigation actions undertaken or recommended. In addition, the Contractor shall describe the efforts it undertook to prevent use or submission of covered telecommunications equipment or services, and any additional efforts that will be incorporated to prevent future use or submission of covered telecommunications equipment or services.
(e) Subcontracts. The Contractor shall insert the substance of this clause, including this paragraph (e) and excluding paragraph (b)(2), in all subcontracts and other contractual instruments, including subcontracts for the acquisition of commercial products or commercial services.
(End of Clause)

52.211-12 LIQUIDATED DAMAGES--CONSTRUCTION (SEP 2000)

(a) If the Contractor fails to complete the work within the time specified in the contract, the Contractor shall pay liquidated damages to the Government in the amount of $134.39 for each calendar day of delay until the work is completed or accepted.

(b) If the Government terminates the Contractor's right to proceed, liquidated damages will continue to accrue until the work is completed. These liquidated damages are in addition to excess costs of repurchase under the Termination clause.
(End of Clause)

52.217-9 OPTION TO EXTEND THE TERM OF THE CONTRACT (MAR 2000)

(a) The Government may extend the term of this contract by written notice to the Contractor within 30 calendar days; provided that the Government gives the Contractor a preliminary written notice of its intent to extend at least 30 calendar days before the contract expires. The preliminary notice does not commit the Government to an extension.

(b) If the Government exercises this option, the extended contract shall be considered to include this option clause.

(c) The total duration of this contract, including the exercise of any options under this clause, shall not exceed five (5) years and six (6) months from the date of award. In the event an option is exercised within an individual task order, the performance period shall be stated within the task order.
(End of Clause)

52.222-30 CONSTRUCTION WAGE RATE REQUIREMENTS--PRICE ADJUSTMENT (NONE OR SEPARATELY SPECIFIED METHOD) (AUG 2018)

(a) The wage determination issued under the Construction Wage Rate Requirements statute by the Administrator, Wage and Hour Division, U.S. Department of Labor, that is effective for an option to extend the term of the contract, will apply to that option period.
(b) The Contracting Officer will make no adjustment in contract price, other than provided for elsewhere in this contract, to cover any increases or decreases in wages and benefits as a result of-

(1) Incorporation of the Department of Labor's wage determination applicable at the exercise of the option to extend the term of the contract;

(2) Incorporation of a wage determination otherwise applied to the contract by operation of law; or
(3) An increase in wages and benefits resulting from any other requirement applicable to workers subject to the Construction Wage Rate Requirements statute.
(End of Clause)

52.222-31 CONSTRUCTION WAGE RATE REQUIREMENTS--PRICE ADJUSTMENT (PERCENTAGE METHOD) (AUG 2018)

(a) The wage determination issued under the Construction Wage Rate Requirements statute by the Administrator, Wage and Hour Division, U.S. Department of Labor, that is effective for an option to extend the term of the contract, will apply to that option period.
(b) The Contracting Officer will adjust the portion of the contract price or contract unit price(s) containing the labor costs subject to the Construction Wage Rate Requirements statute to provide for an increase in wages and fringe benefits at the exercise of each option to extend the term of the contract in accordance with the following procedures:
(1) The Contracting Officer has determined that the portion of the contract price or contract unit price(s) containing labor costs subject to the Construction Wage Rate Requirements statute is 100 percent.

(2) The Contracting Officer will increase the portion of the contract price or contract unit price(s) containing the labor costs subject to the Construction Wage Rate Requirements statute by the percentage rate published in SAM.gov.

(c) Contracting Officer will make the price adjustment at the exercise of each option to extend the term of the contract. This adjustment is the only adjustment that the Contracting Officer will make to cover any increases in wages and benefits as a result

of—

(1) Incorporation of the Department of Labor's wage determination applicable at the exercise of the option to extend the term of the contract;

(2) Incorporation of a wage determination otherwise applied to the contract by operation of law; or
(3) An increase in wages and benefits resulting from any other requirement applicable to workers subject to the Construction Wage Rate Requirements statute.
(End of Clause)

52.223-7 NOTICE OF RADIOACTIVE MATERIALS (JAN 1997)

(a) The Contractor shall notify the Contracting Officer or designee in writing, 30 days prior to the delivery of, or prior to completion of any servicing required by this contract of, items containing either (1) radioactive material requiring specific licensing under the regulations issued pursuant to the Atomic Energy Act of1954, as amended, as set forth in Title 10 of the Code of Federal Regulations, in effect on the date of this contract, or (2) other radioactive material not requiring specific licensing in which the specific activity is greater than 0.002 microcuries per gram or the activity per item equals or exceeds 0.01 microcuries. Such notice shall specify the part or parts of the items which contain radioactive materials, a description of the materials, the name and activity of the isotope, the manufacturer of the materials, and any other information known to the Contractor

which will put users of the items on notice as to the hazards involved (OMB No.9000-0107).

(b) If there has been no change affecting the quantity of activity, or the characteristics and composition of the radioactive material from deliveries under this contract or prior contracts, the Contractor may request that the Contracting Officer or designee waive the notice requirement in paragraph (a) of this clause. Any such request shall-

(1) Be submitted in writing;

(2) State that the quantity of activity, characteristics, and composition of the radioactive material have not changed; and

(3) Cite the contract number on which the prior notification was submitted and the contracting office to which it was submitted.

(c) All items, parts, or subassemblies which contain radioactive materials in which the specific activity is greater than 0.002 microcuries per gram or activity per item equals or exceeds 0.01 microcuries, and all containers in which such items, parts or subassemblies are delivered to the Government shall be clearly marked and labeled as required by the latest revision of MIL-STD 129 in effect on the date of the contract.

(d) This clause, including this paragraph (d), shall be inserted in all subcontracts for radioactive materials meeting the criteria in paragraph (a) of this clause.

(e)

(End of Clause)

52.223-9 ESTIMATE OF PERCENTAGE OF RECOVERED MATERIAL CONTENT FOR EPA- DESIGNATED ITEMS (MAY 2008)

(a) Definitions. As used in this clause--

Postconsumer material means a material or finished product that has served its intended use and has been discarded for disposal or recovery, having completed its life as a consumer item. Postconsumer material is a part of the broader category of “recovered material.”

Recovered material means waste materials and by-products recovered or diverted from solid waste, but the term does not include those materials and by-products generated from, and commonly reused within, an original manufacturing process.

(b) The Contractor, on completion of this contract, shall--

(1) Estimate the percentage of the total recovered material content for EPA-designated item(s) delivered and/or used in contract performance, including, if applicable, the percentage of post- consumer material content; and

(2) Submit this estimate to the contracting officer representative and Contracting Officer.

(End of Clause)

52.223-11 OZONE-DEPLETING SUBSTANCES AND HIGH GLOBAL WARMING POTENTIAL HYDROFLUOROCARBONS (JUN 2016)

(a) Definitions. As used in this clause–

Global warming potential means how much a given mass of a chemical contributes to global warming over a given time period compared to the same mass of carbon dioxide. Carbon dioxide's global warming potential is defined as 1.0.

High global warming potential hydrofluorocarbons means any hydrofluorocarbons in a particular end use for which EPA's Significant New Alternatives Policy (SNAP) program has identified other acceptable alternatives that have lower global warming potential. The SNAP list of alternatives is found at 40 CFR part 82, subpart G, with supplemental tables of alternatives available at (https://www.epa.gov/snap/).

Hydrofluorocarbons means compounds that only contain hydrogen, fluorine, and carbon.

Ozone-depleting substance, means any substance the Environmental Protection Agency designates in 40 CFR part 82 as–

(1) Class I, including, but not limited to, chlorofluorocarbons, halons, carbon tetrachloride, and methyl chloroform; or

(2) Class II, including, but not limited to, hydrochlorofluorocarbons.

(b) The Contractor shall label products that contain or are manufactured with ozone-depleting substances in the manner and to the extent required by 42 U.S.C. 7671j (b), (c), (d), and (e) and 40 CFR part 82, subpart E, as follows:

Warning: Contains (or manufactured with, if applicable) *_____, a substance(s) which harm(s) public health and environment by destroying ozone in the upper atmosphere.

* The Contractor shall insert the name of the substance(s).

(c) The Contractor shall refer to EPA's SNAP program to identify alternatives. The SNAP list of alternatives is found at 40 CFR part 82, subpart G, with supplemental tables available at https://www.epa.gov/snap/. (End of Clause)

52.222-90 Addressing DEI Discrimination by Federal Contractors. (APR 2026) (Deviation APR 2026)

Definitions. As used in this clause—

Program participation means membership or participation in, or access or admission to: training, mentoring, or leadership development programs; educational opportunities; clubs; associations; or similar opportunities that are sponsored or established by the contractor or subcontractor.

Racially discriminatory diversity, equity, and inclusion (DEI) activities means disparate treatment based on race or ethnicity in the recruitment, employment (e.g., hiring, promotions), contracting (e.g., vendor agreements), program participation, or allocation or deployment of an entity's resources.

In connection with the performance of work under this contract, the Contractor agrees as

follows:

The Contractor will not engage in any racially discriminatory DEI activities;

The Contractor will furnish all information and reports, including providing access to books, records, and accounts, as required by the Contracting Officer, for purposes of ascertaining compliance with this clause;

In the event of the Contractor's or a subcontractor's noncompliance with this clause, this contract may be canceled, terminated, or suspended in whole or in part, and the Contractor or subcontractor may be declared ineligible for further Government contracts;

The Contractor will report any subcontractor's known or reasonably knowable conduct that may violate this clause to the Contracting Officer and take any appropriate remedial actions directed by the Contracting Officer; and

The Contractor will inform the Contracting Officer if a subcontractor sues the Contractor and the suit puts at issue, in any way, the validity of this clause.

The Contractor recognizes that compliance with the requirements of this clause are material to the Government's payment decisions for purposes of 31 U.S.C. 3729(b)(4).

The Contractor must include the substance of this clause, including this paragraph (c), in subcontracts at any tier, including those for commercial products and commercial services, except those where the place of delivery or performance is outside the United States.
(End of Clause)

52.223-10 Waste Reduction Program. (MAY 2024) (DEVIATION FEB 2025)

(a) Definitions. As used in this clause-

Recycling means the series of activities, including collection, separation, and processing, by which products or other materials are recovered from the solid waste stream for use in the form of raw materials in the manufacture of products other than fuel for producing heat or power by combustion.

Waste prevention means any change in the design, manufacturing, purchase, or use of materials or products (including packaging) to reduce their amount or toxicity before they are discarded. Waste prevention also refers to the reuse of products or materials.

Waste reduction means preventing or decreasing the amount of waste being generated through waste prevention, recycling, or purchasing recycled and environmentally preferable products.

(c) Consistent with the requirements of section 207 of Executive Order 14057, the Contractor shall establish a program to promote cost-effective waste reduction in all operations and facilities covered by this contract. The Contractor’s programs shall

comply with applicable Federal, State, and local requirements, specifically including Section 6002 of the Resource Conservation and Recovery Act (42 U.S.C.6962, etseq.) and implementing regulations (40 CFR Part 247).
(End of Clause)

52.223-23 Sustainable Products and Services. (MAY 2024) (DEVIATION FEB 2025)

(a) Definitions. As used in this clause—

Biobased product means a product determined by the U.S. Department of Agriculture (USDA) to be a commercial product or industrial product (other than food or feed) that is composed, in whole or in significant part, of biological products, including renewable domestic agricultural materials and forestry materials, or that is an intermediate ingredient or feedstock. The term includes, with respect to forestry materials, forest products that meet biobased content requirements, notwithstanding the market share the product holds, the age of the product, or whether the market for the product is new or emerging. (7 U.S.C. 8101) (7 CFR 3201.2).

Recovered material means waste materials and by-products recovered or diverted from solid waste, but the term does not include those materials and by-products generated from, and commonly reused within, an original manufacturing process. (42 U.S.C. 6903).

Sustainable products and services means products and services that are subject to and meet the following applicable statutory mandates and directives for purchasing:

(1) Statutory purchasing programs.

(i) Products containing recovered material designated by the U.S. Environmental Protection Agency (EPA) under the Comprehensive Procurement Guidelines (42 U.S.C. 6962) (40 CFR part 247) (https://www.epa.gov/smm/comprehensive-procurement-guideline-cpg-program#products).

(ii) Energy- and water-efficient products that are ENERGY STAR® certified or Federal Energy Management Program (FEMP)-designated products (42 U.S.C. 8259b) (10 CFR part 436, subpart C) (https://www.energy.gov/eere/femp/search-energy-efficient-products and https://www.energystar.gov/products?s=mega).

(iii) Biobased products meeting the content requirement of the USDA under the BioPreferred® program (7 U.S.C. 8102) (7 CFR part 3201) (https://www.biopreferred.gov).

(iv) Acceptable chemicals, products, and manufacturing processes listed under EPA's Significant New Alternatives Policy (SNAP) program, which ensures a safe and smooth transition away from substances that contribute to the depletion of stratospheric ozone (42 U.S.C. 7671l) (40 CFR part 82, subpart G) (https://www.epa.gov/snap).

(2) Required EPA purchasing programs.

(i) WaterSense® labeled (water efficient) products and services (https://www.epa.gov/watersense/watersense-products).

(ii) Safer Choice-certified products (products that contain safer chemical ingredients) (https://www.epa.gov/saferchoice/products).

(iii) Product and services that meet EPA Recommendations of Specifications, Standards, and Ecolabels in effect as of October 2023 (https://www.epa.gov/greenerproducts/recommendations-specifications-standards-and-ecolabels-federal-purchasing).

(b) Requirements.

(1) The sustainable products and services, including the purchasing program and type of product or service, that are applicable to this contract, and any products or services that are not subject to this clause, will be set forth in the statement of work or elsewhere in the contract.

(2) The Contractor shall ensure that the sustainable products and services required by this contract are—

(i) Delivered to the Government;

(ii) Furnished for use by the Government;

(iii) Incorporated into the construction of a public building or public work; and

(iv) Furnished for use in performing services under this contract, where the cost of the products is a direct cost to this contract (versus costs which are normally applied to the Contractor's general and administrative expenses or indirect costs). This includes services performed by contractors performing management and operation of Government-owned facilities to the same extent that, at the time of award, an agency would be required to comply if an agency operated or supported the facility.

(3) (i) Except as provided in paragraph (b)(3)(ii) of this clause, sustainable products and services must meet the applicable standards, specifications, or other program requirements at time of quote or offer submission; and
(ii) Sustainable products and services must meet the EPA Recommendations of Specifications, Standards, and Ecolabels in effect as of October 2023.

(c) Resource. The Green Procurement Compilation (GPC) available at https://sftool.gov/greenprocurement provides a comprehensive list of sustainable products and services and sustainable acquisition guidance. The Contractor should review the GPC when determining which purchasing programs apply to a specific product or service.
(End of Clause)

52.225-11 BUY AMERICAN--CONSTRUCTION MATERIALS UNDER TRADE AGREEMENTS (NOV 2023)

(a) *Definitions*. As used in this clause—

Caribbean Basin country construction material means a construction material that—

(1) Is wholly the growth, product, or manufacture of a Caribbean Basin country; or

(2) In the case of a construction material that consists in whole or in part of materials from another country, has been substantially transformed in a Caribbean Basin country into a new and different construction material distinct from the materials from which it was transformed.

Commercially available off-the-shelf (COTS) item—

(1) Means any item of supply (including construction material) that is–

(i) A commercial product (as defined in paragraph (1) of the definition of "commercial product" at Federal Acquisition Regulation (FAR) 2.101);

(ii) Sold in substantial quantities in the commercial marketplace; and

(iii) Offered to the Government, under a contract or subcontract at any tier, without modification, in the same form in which it is sold in the commercial marketplace; and

(2) Does not include bulk cargo, as defined in 46 U.S.C. 40102(4), such as agricultural products and petroleum products.

Component means an article, material, or supply incorporated directly into a construction material.

Construction material means an article, material, or supply brought to the construction site by the Contractor or subcontractor for incorporation into the building or work. The term also includes an item brought to the site preassembled from articles, materials, or supplies. However, emergency life safety systems, such as emergency lighting, fire alarm, and audio evacuation systems, that are discrete systems incorporated into a public building or work and that are produced as complete systems, are evaluated as a single and distinct construction material regardless of when or how the individual parts or components of those systems are delivered to the construction site. Materials purchased directly by the Government are supplies, not construction material.

Cost of components means—

(1) For components purchased by the Contractor, the acquisition cost, including transportation costs to the place of incorporation into the construction material (whether or not such costs are paid to a domestic firm), and any applicable duty (whether or not a duty-free entry certificate is issued); or

(2) For components manufactured by the Contractor, all costs associated with the manufacture of the component, including transportation costs as described in paragraph (1) of this definition, plus allocable overhead costs, but excluding profit. Cost of components does not include any costs associated with the manufacture of the construction material.

Critical component means a component that is mined, produced, or manufactured in the United States and deemed critical to the U.S. supply chain. The list of critical components is at FAR 25.105.

Critical item means a domestic construction material or domestic end product that is deemed critical to U.S. supply chain resiliency. The list of critical items is at FAR 25.105.

Designated country means any of the following countries:

(1) A World Trade Organization Government Procurement Agreement (WTO GPA) country (Armenia, Aruba, Australia, Austria, Belgium, Bulgaria, Canada, Croatia, Cyprus, Czech Republic, Denmark, Estonia, Finland, France, Germany, Greece, Hong Kong, Hungary, Iceland, Ireland, Israel, Italy, Japan, Korea (Republic of), Latvia, Liechtenstein, Lithuania, Luxembourg, Malta, Moldova, Montenegro, Netherlands, New Zealand, North Macedonia, Norway, Poland, Portugal, Romania, Singapore, Slovak Republic, Slovenia, Spain, Sweden, Switzerland, Taiwan, Ukraine, or United Kingdom);

(2) A Free Trade Agreement (FTA) country (Australia, Bahrain, Chile, Colombia, Costa Rica, Dominican Republic, El Salvador, Guatemala, Honduras, Korea (Republic of), Mexico, Morocco, Nicaragua, Oman, Panama, Peru, or Singapore);

(3) A least developed country (Afghanistan, Angola, Bangladesh, Benin, Bhutan, Burkina Faso, Burundi, Cambodia, Central African Republic, Chad, Comoros, Democratic Republic of Congo, Djibouti, Equatorial Guinea, Eritrea, Ethiopia, Gambia, Guinea, Guinea-Bissau, Haiti, Kiribati, Laos, Lesotho, Liberia, Madagascar, Malawi, Mali, Mauritania, Mozambique, Nepal, Niger, Rwanda, Samoa, Sao Tome and Principe, Senegal, Sierra Leone, Solomon Islands, Somalia, South Sudan, Tanzania, Timor-Leste, Togo, Tuvalu, Uganda, Vanuatu, Yemen, or Zambia); or

(4) A Caribbean Basin country (Antigua and Barbuda, Aruba, Bahamas, Barbados, Belize, Bonaire, British Virgin Islands, Curacao, Dominica, Grenada, Guyana, Haiti, Jamaica, Montserrat, Saba, St. Kitts and Nevis, St. Lucia, St. Vincent and the Grenadines, Sint Eustatius, Sint Maarten, or Trinidad and Tobago).

Designated country construction material means a construction material that is a WTO GPA country construction material, an FTA country construction material, a least developed country construction material, or a Caribbean Basin country construction material.

Domestic construction material means—

(1) For construction material that does not consist wholly or predominantly of iron or steel or a combination of both-

(i) An unmanufactured construction material mined or produced in the United States; or

(ii) A construction material manufactured in the United States, if—

(A) The cost of its components mined, produced, or manufactured in the United States exceeds 60 percent of the cost of all its components, except that the percentage will be 65 percent for items delivered in calendar years 2024 through 2028 and 75 percent for items delivered starting in calendar year 2029.

(B) The construction material is a COTS item; or

(2) For construction material that consists wholly or predominantly of iron or steel or a combination of both, a construction material manufactured in the United States if the cost of foreign iron and steel constitutes less than 5 percent of the cost of all components used in such construction material. The cost of foreign iron and steel includes but is not limited to the cost of foreign iron or steel mill products (such as bar, billet, slab, wire, plate, or sheet), castings, or forgings utilized in the manufacture of the construction material and a good faith estimate of the cost of all foreign iron or steel components excluding COTS fasteners. Iron or steel components of unknown origin are treated as foreign. If the construction material contains multiple components, the cost of all the materials used in such construction material is calculated in accordance with the definition of "cost of components".

Fastener means a hardware device that mechanically joins or affixes two or more objects together. Examples of fasteners are nuts, bolts, pins, rivets, nails, clips, and screws.

Foreign construction material means a construction material other than a domestic construction material.

Foreign iron and steel means iron or steel products not produced in the United States. Produced in the United States means that all manufacturing processes of the iron or steel must take place in the United States, from the initial melting stage through the application of coatings, except metallurgical processes involving refinement of steel additives. The origin of the elements of the iron or steel is not relevant to the determination of whether it is domestic or foreign.

Free Trade Agreement country construction material means a construction material that-

(1) Is wholly the growth, product, or manufacture of a Free Trade Agreement (FTA) country; or

(2) In the case of a construction material that consists in whole or in part of materials from another country, has been substantially transformed in a FTA country into a new and different construction material distinct from the materials from which it was transformed.

Least developed country construction material means a construction material that-

(1) Is wholly the growth, product, or manufacture of a least developed country; or

(2) In the case of a construction material that consists in whole or in part of materials from another country, has been substantially transformed in a least developed country into a new and different construction material distinct from the materials from which it was transformed.

Predominantly of iron or steel or a combination of both means that the cost of the iron and steel content exceeds 50 percent of the total cost of all its components. The cost of iron and steel is the cost of the iron or steel mill products (such as bar, billet, slab, wire, plate, or sheet), castings, or forgings utilized in the manufacture of the product and a good faith estimate of the cost of iron or steel components excluding COTS fasteners.

Steel means an alloy that includes at least 50 percent iron, between 0.02 and 2 percent carbon, and may include other elements.

United States means the 50 States, the District of Columbia, and outlying areas.

WTO GPA country construction material means a construction material that-

(1) Is wholly the growth, product, or manufacture of a WTO GPA country; or

(2) In the case of a construction material that consists in whole or in part of materials from another country, has been substantially transformed in a WTO GPA country into a new and different construction material distinct from the materials from which it was transformed.

(b) Construction materials.

(1) This clause implements 41 U.S.C. chapter 83, Buy American, by providing a preference for domestic construction material. In accordance with 41 U.S.C.1907, the domestic content test of the Buy American statute is waived for construction material that is a COTS item, except that for construction material that consists wholly or predominantly of iron or steel or a combination of both, the domestic content test is applied only to the iron and steel content of the construction material, excluding COTS fasteners. (See FAR 12.505(a)(2)). In addition, the Contracting Officer has determined that the WTO GPA and Free Trade Agreements (FTAs) apply to this acquisition. Therefore, the Buy American restrictions are waived for designated country construction materials.

(2) The Contractor shall use only domestic or designated country construction material in performing this contract, except as provided in paragraphs (b)(3) and (b)(4) of this clause.

(3) The requirement in paragraph (b)(2) of this clause does not apply to information technology that is a commercial product or to the construction materials or components listed by the Government as follows:

[Contracting Officer to list applicable excepted materials or indicate "none"]

(4) The Contracting Officer may add other foreign construction material to the list in paragraph (b)(3) of this clause if the Government determines that-

(i) The cost of domestic construction material would be unreasonable.

(A) *For domestic construction material that is not a critical item or does not contain critical components*.

(1) The cost of a particular domestic construction material subject to the restrictions of the Buy American statute is unreasonable when the cost of such material exceeds the cost of foreign material by more than 20 percent;

(2) For construction material that is not a COTS item and does not consist wholly or predominantly of iron or steel or a combination of both, if the cost of a particular domestic construction material is determined to be unreasonable or there is no domestic offer received, and the low offer is for foreign construction material that does not exceed 55 percent domestic content, the Contracting Officer will treat the lowest offer of foreign construction material that is manufactured in the United States and exceeds 55 percent domestic content as a domestic offer and determine whether the cost of that offer is unreasonable by applying the evaluation factor listed in paragraph (b)(4)(i)(A)*(1)* of this clause.

(3) The procedures in paragraph (b)(4)(i)(A)*(2)* of this clause will no longer apply as of January 1, 2030.

(B) *For domestic construction material that is a critical item or contains critical components*.

(1) The cost of a particular domestic construction material that is a critical item or contains critical components, subject to the requirements of the Buy American statute, is unreasonable when the cost of such material exceeds the cost of foreign material by more than 20 percent plus the additional preference factor identified for the critical item or construction material containing critical components listed at FAR 25.105.

(2) For construction material that does not consist wholly or predominantly of iron or steel or a combination of both, if the cost of a particular domestic construction material is determined to be unreasonable or there is no domestic offer received, and the low offer is for foreign construction material that does not exceed 55 percent domestic content, the Contracting Officer will treat the lowest offer of foreign construction material that is manufactured in the United States and exceeds 55 percent domestic content as a domestic offer,

and determine whether the cost of that offer is unreasonable by applying the evaluation factor listed in paragraph (b)(4)(i)(B)*(1)* of this clause.

(3) The procedures in paragraph (b)(4)(i)(B)*(2)* of this clause will no longer apply as of January 1, 2030.

(ii) The application of the restriction of the Buy American Act to a particular construction material would be impracticable or inconsistent with the public interest; or

(iii) The construction material is not mined, produced, or manufactured in the United States in sufficient and reasonably available commercial quantities of a satisfactory quality.

(c) Request for determination of inapplicability of the Buy American statute.

(1)

(i) Any Contractor request to use foreign construction material in accordance with paragraph (b)(4) of this clause shall include adequate information for Government evaluation of the request, including-

(A) A description of the foreign and domestic construction materials;

(B) Unit of measure;

(C) Quantity;

(D) Price;

(E) Time of delivery or availability;

(F) Location of the construction project;

(G) Name and address of the proposed supplier; and

(H) A detailed justification of the reason for use of foreign construction materials cited in accordance with paragraph (b)(3) of this clause.

(ii) A request based on unreasonable cost shall include a reasonable survey of the market and a completed price comparison table in the format in paragraph (d) of this clause.

(iii) The price of construction material shall include all delivery costs to the construction site and any applicable duty (whether or not a duty-free certificate may be issued).

(iv) Any Contractor request for a determination submitted after contract award shall explain why the Contractor could not reasonably foresee the need for such determination and could not have requested the determination before contract award. If the Contractor does not submit a satisfactory explanation, the Contracting Officer need not make a determination.

(2) If the Government determines after contract award that an exception to the Buy American statute applies and the Contracting Officer and the Contractor negotiate adequate consideration, the Contracting Officer will modify the contract to allow use of the foreign construction material. However, when the basis for the exception is the unreasonable price of a domestic construction material, adequate consideration is not less than the differential established in paragraph (b)(4)(i) of this clause.

(3) Unless the Government determines that an exception to the Buy American statute applies, use of foreign construction material is noncompliant with the Buy American statute.

(d) *Data*. To permit evaluation of requests under paragraph (c) of this clause based on unreasonable cost, the Contractor shall include the following information and any applicable supporting data based on the survey of suppliers:

Foreign and Domestic Construction Materials Price Comparison			
Construction Material Description	Unit of Measure	Quantity	Price (Dollars)*
Item1			
Foreign construction material	_____	_____	_____
Domestic construction material	_____	_____	_____
Item1			
Foreign construction material	_____	_____	_____
Domestic construction material	_____	_____	_____

[* *Include all delivery costs to the construction site and any applicable duty (whether or not a duty-free entry certificate is issued*)].

[*List name, address, telephone number, and contact for suppliers surveyed. Attach copy of response; if oral, attach summary.*]

[*Include other applicable supporting information.*]

(End of Clause)

Alternate I (NOV 2023) . As prescribed in 25.1102 (c)(3), add the following definition of "Bahraini, Mexican, or Omani construction material" to paragraph (a) of the basic clause, and substitute the following paragraphs (b)(1) and (b)(2) for paragraphs (b)(1) and (b)(2) of the basic clause:

"Bahraini, Mexican, or Omani construction material" means a construction material that-

(1) Is wholly the growth, product, or manufacture of Bahrain, Mexico, or Oman; or

(2) In the case of a construction material that consists in whole or in part of materials from another country, has been substantially transformed in Bahrain, Mexico, or Oman into a new and different construction material distinct from the materials from which it was transformed.

(b) Construction materials. (1) This clause implements 41 U.S.C. chapter 83, Buy American, by providing a preference for domestic construction material. In accordance with 41 U.S.C. 1907, the domestic content test of the Buy American statute is waived for construction material that is a COTS item, except that for construction material that consists wholly or predominantly of iron or steel or a combination of both, the domestic content test is applied only to the iron and steel content of the construction material, excluding COTS fasteners. (See 12.505(a)(2)). In addition, the Contracting Officer has determined that the WTO GPA and all the Free Trade Agreements except the Bahrain FTA, United States-Mexico-Canada Agreement, and the Oman FTA apply to this acquisition. Therefore, the Buy American statute restrictions are waived for designated country construction materials other than Bahraini, Mexican, or Omani construction materials.

(2) The Contractor shall use only domestic or designated country construction material other than Bahraini, Mexican, or Omani construction material in performing this contract, except as provided in paragraphs (b)(3) and (b)(4) of this clause.

Alternate II (OCT 2022). As prescribed in 25.1102 (c)(4) substitute the following sentence for the first sentence of paragraph (1)(ii)(A) of the definition of *domestic construction material* in paragraph (a):

(A) The cost of its components mined, produced, or manufactured in the United States exceeds __ percent of the cost of all its components. [*Contracting officer to insert the percentage.*]

52.228-13 – ALTERNATIVE PAYMENT PROTECTIONS (JUL 2000)

The Contractor shall submit one of the following payment protections: Payment bond
Irrevocable letter of credit (ILC)

The amount of the payment protection shall be 100 percent of the contract price.

The submission of the payment protection is required within 14 days of contract award.

The payment protection shall provide protection for the full contract performance period plus a one-year period.

Except for escrow agreements and payment bonds, which provide their own protection procedures, the Contracting Officer is authorized to access funds under the payment protection when it has been alleged in writing by a supplier of labor or material that a nonpayment has occurred, and to withhold such funds pending resolution by administrative or judicial proceedings or mutual agreement of the parties.

When a tripartite escrow agreement is used, the Contractor shall utilize only suppliers of labor and material that signed the escrow agreement.
(End of Clause)

52.247-69 REPORTING REQUIREMENT FOR U.S.-FLAG AIR CARRIERS REGARDING TRAINING TO PREVENT HUMAN TRAFFICKING (JAN 2025)

a) Definitions. As used in this clause—
Human trafficking means "Severe forms of trafficking in persons" or "Sex trafficking."
Severe forms of trafficking in persons means—

Sex trafficking in which a commercial sex act is induced by force, fraud, or coercion, or in which the person induced to perform such act has not attained 18 years of age; or

The recruitment, harboring, transportation, provision, or obtaining of a person for labor or services, through the use of force, fraud, or coercion for the purpose of subjection to involuntary servitude, peonage, debt bondage, or slavery.
Sex trafficking means the recruitment, harboring, transportation, provision, or obtaining of a person for the purpose of a commercial sex act.

Annual reporting requirement.
In accordance with 49 U.S.C. 40118(g), the Contractor shall provide the annual report described in paragraph (b)(2) of this clause by October 30th, via email, to the following agencies:

General Services Administration: TraffickingPreventionReport@gsa.gov;
U.S. Department of Transportation: trafficking@dot.gov;
Department of Labor: AirCarrier-HTreports@dol.gov;

Transportation Security Administration: ics-cchtfams@tsa.dhs.gov;
U.S. Customs and Border Protection: CLP@cbp.dhs.gov; and
DHS Center for Countering Human Trafficking: Info@CCHT.dhs.gov.

The annual report shall include information from the preceding Government fiscal year (October 1 through September 30) regarding—
The number of personnel trained in the detection and reporting of potential human trafficking, including the training required under 49 U.S.C. 44734(a)(4);

The number of notifications of potential human trafficking victims received from staff or other passengers; and

Whether the Contractor notified the Global Human Trafficking Hotline, another comparable hotline, or law enforcement at the relevant airport of the potential human trafficking victim for each such notification of potential human trafficking; and
If the Contractor made a notification, the date the notification was made and the method of notification (e.g., text to Hotline, call to law enforcement).

Training. In accordance with 49 U.S.C. 44734 and 44738, personnel trained in the detection and reporting of potential human trafficking should include the following:
Flight attendants;
Ticket counter agents;
Gate agents; and
Other air carrier workers whose jobs require regular interaction with passengers.
(End of Clause)

52.233-3 PROTEST AFTER AWARD (AUG. 1996)

(a) Upon receipt of a notice of protest (as defined in FAR 33.101) or a determination that a protest is likely (see FAR 33.102(d)), the Contracting Officer may, by written order to the Contractor, direct the Contractor to stop performance of the work called for by this contract. The order shall be specifically identified as a stop-work order issued under this clause. Upon receipt of the order, the Contractor shall immediately comply with its terms and take all reasonable steps to minimize the incurrence of costs allocable to the work covered by the order during the period of work stop-page. Upon receipt of the final decision in the protest, the Contracting Officer shall either-

(1) Cancel the stop-work order; or

(2) Terminate the work covered by the order as provided in the Default, or the Termination for Convenience of the Government, clause of this contract.

(b) If a stop-work order issued under this clause is canceled either before or after a final decision in the protest, the Contractor shall resume work. The Contracting Officer shall make an equitable adjustment in the delivery schedule or contract price, or both, and the contract shall be modified, in writing, accordingly, if-

(1) The stop-work order results in an increase in the time required for, or in the Contractor's cost properly allocable to, the performance of any part of this contract; and

(2) The Contractor asserts its right to an adjustment within 30 days after the end of the period of work stoppage; provided, that if the Contracting Officer decides the facts justify the action, the Contracting Officer may receive and act upon a proposal at any time before final payment under this contract.

(c) If a stop-work order is not canceled and the work covered by the order is terminated for the convenience of the Government, the Contracting Officer shall allow reasonable costs resulting from the stop-work order in arriving at the termination settlement.

(d) If a stop-work order is not canceled and the work covered by the order is terminated for default, the Contracting Officer shall allow, by equitable adjustment or otherwise, reasonable costs resulting from the stop-work order.

(e) The Government's rights to terminate this contract at any time are not affected by action taken under this clause.

(f) If, as the result of the Contractor's intentional or negligent misstatement, misrepresentation, or miscertification, a protest related to this contract is sustained, and the Government pays costs, as provided in FAR 33.102(b)(2) or 33.104(h)(1), the Government may require the Contractor to reimburse the Government the amount of such costs. In addition to any other remedy available, and pursuant to the requirements of subpart 32.6, the Government may collect this debt by offsetting the amount against any payment due the Contractor under any contract between the Contractor and the Government.
(End of Clause)

Alternate I (June1985). As prescribed in 33.106 (b), substitute in paragraph (a)(2) the words "the Termination clause of this contract" for the words "the Default, or the Termination for Convenience of the Government clause of this contract." In paragraph (b) substitute the words "an equitable adjustment in the delivery schedule, the estimated cost, the fee, or a combination thereof, and in any other terms of the contract that may be affected" for the words "an equitable adjustment in the delivery schedule or contract price, or both."
(End of Clause)

52.236-1 PERFORMANCE OF WORK BY THE CONTRACTOR (APR 1984)

The Contractor shall perform on the site, and with its own organization, work equivalent to at least 50% percent of the total amount of work to be performed under the contract. This percentage may be reduced by a supplemental agreement to this contract if, during performing the work, the Contractor requests a reduction and the Contracting Officer determines that the reduction would be to the advantage of the Government.
(End of Clause)

52.236-4 PHYSICAL DATA (APR 1984)

Data and information furnished or referred to below is for the Contractor's information. The Government shall not be responsible for any interpretation of or conclusion drawn from the data or information by the Contractor.

(a) The indications of physical conditions on the drawings and in the specifications are the result of site investigations by _____ [insert a description of investigational methods used, such as surveys, auger borings, core borings, test pits, probings, test tunnels].

(b) Weather conditions _____ [insert a summary of weather records and warnings].

(c) Transportation facilities _____ [insert a summary of transportation facilities providing access from the site, including information about their availability and limitations].

(d) _____ [insert other pertinent information].

(End of Clause)

52.252-6 AUTHORIZED DEVIATIONS IN CLAUSES.(NOV 2020)

As prescribed in 52.107(f), insert the following clause in solicitations and contracts that include any FAR or supplemental clause with an authorized deviation. Whenever any FAR or supplemental clause is used with an authorized deviation, the contracting officer shall identify it by the same number, title, and date assigned to the clause when it is used without deviation, include regulation name for any supplemental clause, except that the contracting officer shall insert "(DEVIATION)" after the date of the clause.
(End of Clause)

52.253-1 COMPUTER GENERATED FORMS (JAN 1991)

Any data required to be submitted on a Standard or Optional Form prescribed by the Federal Acquisition Regulation (FAR) may be submitted on a computer-generated version of the form, provided there is no change to the name, content, or sequence of the data elements on the form, and provided the form carries the Standard or Optional Form number and edition date.

Unless prohibited by agency regulations, any data required to be submitted on an agency unique form prescribed by an agency supplement to the FAR may be submitted on a computer-generated version of the form provided there is no change to the name, content, or sequence of the data elements on the form and provided the form carries the agency form number and edition date.

If the Contractor submits a computer-generated version of a form that is different than the required form, then the rights and obligations of the parties will be determined based on the content of the required form.
(End of Clause)

DEPARTMENT OF TREASURY ACQUISITION REGULATIONS (DTAR) 1052.210-70 CONTRACTOR PUBLICITY (APR 2015)

The Contractor, or any entity or representative acting on behalf of the Contractor, shall not refer to the supplies or services furnished pursuant to the provisions of this contract in any news release or commercial advertising, or in connection with any news release or commercial advertising, without first obtaining explicit written consent to do so from the Contracting Officer. Should any reference to such supplies or services appear in any news release or commercial advertising issued by or on behalf of the Contractor without the required consent, the Government shall consider institution of all remedies available under applicable law, including 31 U.S.C. 333, and this contract. Further, any violation of this clause may be considered as part of the evaluation of past performance.
(End of Clause)

(END OF SECTION I)

SECTION J - ATTACHMENTS

IDENTIFIER	TITLE
1.	Past Performance Questionnaire
2.	Davis-Bacon Wage Determination
3.	Statement of Work – Cooling Towers
4.	Pricing Table
5.	Quality Assurance Surveillance Plan
6.	Initial Staffing Plan
7.	Monthly Workforce Report
8.	Site Visit Sign In Sheet
9.	75D-04.0-08 Environmental, Health and Safety (EHS) Form Construction Safety Permit (After Award)
10.	75D-07.0-04 EMS Document EHS Contractor Requirements (mandatory compliance)
11.	75D-04.0-11 Fall Protection Procedure (mandatory compliance)
12.	75D-04.0-01 Emergency Action and Fire Prevention Plan (mandatory compliance)
13.	Mutual Multi Party Non-Disclosure Agreement (NDA) (After Award)
14.	Evapco performance data.pdf
15.	M02-schematic-BEPVFD Model Chiller Planty Flow Schematic mechanical 2.pdf
16.	M03-vfd plan-BEPVFD.pdf
17.	M04-Cooling Tower piping plan-BEPVFD M-4.pdf
18.	Plate & Frame HX Information.pdf
19.	Structural Support for VFDs.pdf
20.	Tower_submittal.pdf

21.	BEP-E1R613 Model Chiller Plant Electrical.pdf
22.	BEP-E2R0613 Layout1 Chiller Plant Electrical 2.pdf
23.	BEP-M1R613 w chiller Layout1.pdf
24.	Cooling Tower Information BEP Chilled Water Plant.pdf
25.	ax-dcm-06 Main Roof Top.pdf
26.	M-DCA-09-1001023-HV.pdf
27.	ax-dca-09 Annex Roof Top.pdf
28.	Chiller Plan Upgrade M-1_120508 Model (1).pdf
29.	Chiller Plan Upgrade M-1_recover.pdf
30.	Pictures
31.	Pictures
32.	Pictures

(END OF SECTION J)

SECTION K - REPRESENTATIONS, CERTIFICATIONS, AND OTHER STATEMENTS OF OFFERORS OR RESPONDENTS

52.212-3 Offeror Representations and Certifications—Commercial Products and Commercial Services. (NOV 2023)
As prescribed in 12.301(b)(2), insert the following provision:
Offeror Representations and Certifications—Commercial Products and Commercial Services (Nov 2021)
The Offeror shall complete only paragraph (b) of this provision if the Offeror has completed the annual representations and certification electronically in the System for Award Management (SAM) accessed through https://www.sam.gov. If the Offeror has not completed the annual representations and certifications electronically, the Offeror shall complete only paragraphs (c) through (v)) of this provision.
Definitions. As used in this provision—
"Covered telecommunications equipment or services" has the meaning provided in the clause 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.
Economically disadvantaged women-owned small business (EDWOSB) concern means a small business concern that is at least 51 percent directly and unconditionally owned by, and the management and daily business operations of which are controlled by, one or more women who are citizens of the United States and who are economically disadvantaged in accordance with 13 CFR part 127. It automatically qualifies as a women-owned small business eligible under the WOSB Program.
Forced or indentured child labor means all work or service—
Exacted from any person under the age of 18 under the menace of any penalty for its nonperformance and for which the worker does not offer himself voluntarily; or
Performed by any person under the age of 18 pursuant to a contract the enforcement of which can be accomplished by process or penalties.
Highest-level owner means the entity that owns or controls an immediate owner of the offeror, or that owns or controls one or more entities that control an immediate owner of the offeror. No entity owns or exercises control of the highest level owner.
Immediate owner means an entity, other than the offeror, that has direct control of the offeror. Indicators of control include, but are not limited to, one or more of the following: ownership or interlocking management, identity of interests among family members, shared facilities and equipment, and the common use of employees.
Inverted domestic corporation, means a foreign incorporated entity that meets the definition of an inverted domestic corporation under 6 U.S.C. 395(b), applied in accordance with the rules and definitions of 6 U.S.C. 395(c).
Manufactured end product means any end product in product and service codes (PSCs) 1000-9999, except—
PSC 5510, Lumber and Related Basic Wood Materials;
Product or Service Group (PSG) 87, Agricultural Supplies;
PSG 88, Live Animals;
PSG 89, Subsistence;
PSC 9410, Crude Grades of Plant Materials;
PSC 9430, Miscellaneous Crude Animal Products, Inedible;

PSC 9440, Miscellaneous Crude Agricultural and Forestry Products;
PSC 9610, Ores;
PSC 9620, Minerals, Natural and Synthetic; and
PSC 9630, Additive Metal Materials.
Place of manufacture means the place where an end product is assembled out of components, or otherwise made or processed from raw materials into the finished product that is to be provided to the Government. If a product is disassembled and reassembled, the place of reassembly is not the place of manufacture.
Predecessor means an entity that is replaced by a successor and includes any predecessors of the predecessor.
Reasonable inquiry has the meaning provided in the clause 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.
Restricted business operations means business operations in Sudan that include power production activities, mineral extraction activities, oil-related activities, or the production of military equipment, as those terms are defined in the Sudan Accountability and Divestment Act of 2007 (Pub. L. 110-174). Restricted business operations do not include business operations that the person (as that term is defined in Section 2 of the Sudan Accountability and Divestment Act of 2007) conducting the business can demonstrate—
Are conducted under contract directly and exclusively with the regional government of southern Sudan;
Are conducted pursuant to specific authorization from the Office of Foreign Assets Control in the Department of the Treasury, or are expressly exempted under Federal law from the requirement to be conducted under such authorization;
Consist of providing goods or services to marginalized populations of Sudan;
Consist of providing goods or services to an internationally recognized peacekeeping force or humanitarian organization;
Consist of providing goods or services that are used only to promote health or education; or
Have been voluntarily suspended. "Sensitive technology"—
Sensitive technology—
Means hardware, software, telecommunications equipment, or any other technology that is to be used specifically—
To restrict the free flow of unbiased information in Iran; or
To disrupt, monitor, or otherwise restrict speech of the people of Iran; and
(2) Does not include information or informational materials the export of which the President does not have the authority to regulate or prohibit pursuant to section 203(b)(3)of the International Emergency Economic Powers Act (50 U.S.C. 1702(b)(3)).
Service-disabled veteran-owned small business concern—
Means a small business concern—
Not less than 51 percent of which is owned by one or more service-disabled veterans or, in the case of any publicly owned business, not less than 51 percent of the stock of which is owned by one or more service-disabled veterans; and
The management and daily business operations of which are controlled by one or more service-disabled veterans or, in the case of a service-disabled veteran with permanent and severe disability, the spouse or permanent caregiver of such veteran.
Service-disabled veteran means a veteran, as defined in 38 U.S.C. 101(2), with a disability that is service connected, as defined in 38 U.S.C. 101(16).

Small business concern—
Means a concern, including its affiliates, that is independently owned and operated, not dominant in the field of operation in which it is bidding on Government contracts, and qualified as a small business under the criteria in 13 CFR part 121 and size standards in this solicitation.
Affiliates, as used in this definition, means business concerns, one of whom directly or indirectly controls or has the power to control the others, or a third party or parties control or have the power to control the others. In determining whether affiliation exists, consideration is given to all appropriate factors including common ownership, common management, and contractual relationships. SBA determines affiliation based on the factors set forth at 13 CFR 121.103.
Small disadvantaged business concern, consistent with13 CFR 124.1002, means a small business concern under the size standard applicable to the acquisition, that—
Is at least 51 percent unconditionally and directly owned (as defined at 13 CFR 124.105) by—
One or more socially disadvantaged (as defined at13 CFR 124.103) and economically disadvantaged (as defined at 13 CFR 124.104) individuals who are citizens of the United States; and
Each individual claiming economic disadvantage has a net worth not exceeding $750,000 after taking into account the applicable exclusions set forth at 13 CFR124.104(c)(2); and
The management and daily business operations of which are controlled (as defined at 13.CFR 124.106) by individuals, who meet the criteria in paragraphs (1)(i) and (ii) of this definition.
Subsidiary means an entity in which more than 50 percent of the entity is owned—
Directly by a parent corporation; or
Through another subsidiary of a parent corporation
Successor means an entity that has replaced a predecessor by acquiring the assets and carrying out the affairs of the predecessor under a new name (often through acquisition or merger). The term "successor" does not include new offices/divisions of the same company or a company that only changes its name. The extent of the responsibility of the successor for the liabilities of the predecessor may vary, depending on State law and specific circumstances.
Veteran-owned small business concern means a small business concern—
Not less than 51 percent of which is owned by one or more veterans (as defined at 38 U.S.C. 101(2)) or, in the case of any publicly owned business, not less than 51 percent of the stock of which is owned by one or more veterans; and
The management and daily business operations of which are controlled by one or more veterans.
Women-owned small business (WOSB) concern eligible under the WOSB Program (in accordance with 13 CFR part 127), means a small business concern that is at least 51 percent directly and unconditionally owned by, and the management and daily business operations of which are controlled by, one or more women who are citizens of the United States.
Women-owned small business concern means a small business concern—
That is at least 51 percent owned by one or more women; or, in the case of any publicly owned business, at least51 percent of the stock of which is owned by one or more women; and
Whose management and daily business operations are controlled by one or more women.

Annual Representations and Certifications. Any changes provided by the Offeror in paragraph (b)(2) of this provision do not automatically change the representations and certifications in SAM
The offeror has completed the annual representations and certifications electronically in SAM

accessed through http://www.sam.gov. After reviewing SAM information, the Offeror verifies by submission of this offer that the representations and certifications currently posted electronically at FAR 52.212-3, Offeror Representations and Certifications-Commercial Products and Commercial Services, have been entered or updated in the last 12 months, are current, accurate, complete, and applicable to this solicitation (including the business size standard(s) applicable to the NAICS code(s) referenced for this solicitation), at the time this offer is submitted and are incorporated in this offer by reference (see FAR 4.1201), except for paragraphs .
[Offeror to identify the applicable paragraphs at (c) through (v) of this provision that the offeror has completed for the purposes of this solicitation only, if any.
These amended representation(s) and/or certification(s) are also incorporated in this offer and are current, accurate, and complete as of the date of this offer.
Any changes provided by the offeror are applicable to this solicitation only, and do not result in an update to the representations and certifications posted electronically on SAM.]
Offerors must complete the following representations when the resulting contract will be performed in the United States or its outlying areas. Check all that apply.
Small business concern. The offeror represents as part of its offer that it □ is, □ is not a small business concern.
Veteran-owned small business concern. [Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents as part of its offer that it □ is, □ is not a veteran-owned small business concern.
Service-disabled veteran-owned small business concern. [Complete only if the offeror represented itself as a veteran-owned small business concern in paragraph (c)(2) of this provision.] The offeror represents as part of its offer that it □ is, □ is not a service-disabled veteran-owned small business concern.
Small disadvantaged business concern. [Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents, that it □ is, □ is not a small disadvantaged business concern as defined in 13 CFR124.1002.
Women-owned small business concern. [Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents that it □ is, □ is not a women-owned small business concern.
WOSB concern eligible under the WOSB Program. [Complete only if the offeror represented itself as a women-owned small business concern in paragraph (c)(5) of this provision.] The offeror represents that-
It □ is, □ is not a WOSB concern eligible under the WOSB Program, has provided all the required documents to the WOSB Repository, and no change in circumstances or adverse decisions have been issued that affects its eligibility; and
It □ is, □ is not a joint venture that complies with the requirements of 13 CFR part 127, and the representation in paragraph (c)(6)(i) of this provision is accurate for each WOSB concern eligible under the WOSB Program participating in the joint venture. [The offeror shall enter the name or names of the WOSB concern eligible under the WOSB Program and other small businesses that are participating in the joint venture: .] Each WOSB concern eligible under the WOSB Program participating in the joint venture shall submit a separate signed copy of the WOSB representation.
Economically disadvantaged women-owned small business (EDWOSB) concern. [Complete only if the offeror represented itself as a WOSB concern eligible under the WOSB Program in (c)(6) of this provision.] The offeror represents that-

It □ is, □ is not an EDWOSB concern, has provided all the required documents to the WOSB Repository, and no change in circumstances or adverse decisions have been issued that affects its eligibility; and
It □ is, □ is not a joint venture that complies with the requirements of 13 CFR part 127, and the representation in paragraph (c)(7)(i) of this provision is accurate for each EDWOSB concern participating in the joint venture. [The offeror shall enter the name or names of the EDWOSB concern and other small businesses that are participating in the joint
venture: .] Each EDWOSB concern participating in the joint venture shall submit a separate signed copy of the EDWOSB representation.
Note: Complete paragraphs (c)(8) and (c)(9) only if this solicitation is expected to exceed the simplified acquisition threshold.
Women-owned business concern (other than small business concern). [Complete only if the offeror is a women-owned business concern and did not represent itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents that it □ is a women-owned business concern.
Tie bid priority for labor surplus area concerns. If this is an invitation for bid, small business offerors may identify the labor surplus areas in which costs to be incurred on account of manufacturing or production (by offeror or first-tier subcontractors) amount to more than 50 percent of the contract price:
HUBZone small business concern. [Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents, as part of its offer, that–
It □ is, □ is not a HUBZone small business concern listed, on the date of this representation, on the List of Qualified HUBZone Small Business Concerns maintained by the Small Business Administration, and no material changes in ownership and control, principal office, or HUBZone employee percentage have occurred since it was certified in accordance with 13 CFR Part 126; and
It □ is, □ is not a HUBZone joint venture that complies with the requirements of 13 CFR Part 126, and the representation in paragraph (c)(10)(i) of this provision is accurate for each HUBZone small business concern participating in the HUBZone joint venture. [The offeror shall enter the names of each of the HUBZone small business concerns participating in the HUBZone joint venture: .] Each HUBZone small business concern participating in the HUBZone joint venture shall submit a separate signed copy of the HUBZone representation.
Representations required to implement provisions of Executive Order11246-

Previous contracts and compliance. The offeror represents that-
It □ has, □ has not participated in a previous contract or subcontract subject to the Equal Opportunity clause of this solicitation; and
It □ has, □ has not filed all required compliance reports.
Affirmative Action Compliance. The offeror represents that-
It □ has developed and has on file, □ has not developed and does not have on file, at each establishment, affirmative action programs required by rules and regulations of the Secretary of Labor (41 CFR parts 60-1 and 60-2), or
It □ has not previously had contracts subject to the written affirmative action programs requirement of the rules and regulations of the Secretary of Labor.
Certification Regarding Payments to Influence Federal Transactions

(31 http://uscode.house.gov/ U.S.C. 1352). (Applies only if the contract is expected to exceed $150,000.) By submission of its offer, the offeror certifies to the best of its knowledge and belief that no Federal appropriated funds have been paid or will be paid to any person for influencing or attempting to influence an officer or employee of any agency, a Member of Congress, an officer or employee of Congress or an employee of a Member of Congress on his or her behalf in connection with the award of any resultant contract. If any registrants under the Lobbying Disclosure Act of 1995 have made a lobbying contact on behalf of the offeror with respect to this contract, the offeror shall complete and submit, with its offer, OMB Standard Form LLL, Disclosure of Lobbying Activities, to provide the name of the registrants. The offeror need not report regularly employed officers or employees of the offeror to whom payments of reasonable compensation were made.
Buy American Certificate. (Applies only if the clause at Federal Acquisition Regulation (FAR) 52.225-1, Buy American-Supplies, is included in this solicitation.)
(1)
The Offeror certifies that each end product, except those listed in paragraph (f)(2) of this provision, is a domestic end product.
The Offeror shall list as foreign end products those end products manufactured in the United States that do not qualify as domestic end products.
The terms "domestic end product," "end product," "foreign end product," and "United States" are defined in the clause of this solicitation entitled "Buy American-Supplies."
Foreign End Products:

Line Item No.	Country of Origin
Line Item No.	Country of Origin

[List as necessary]
The Government will evaluate offers in accordance with the policies and procedures of FAR part 25.

Buy American-Free Trade Agreements-Israeli Trade Act Certificate. (Applies only if the clause at FAR 52.225-3, Buy American-Free Trade Agreements-Israeli Trade Act, is included in this solicitation.)
(i)
The Offeror certifies that each end product, except those listed in paragraph (g)(1)(ii) or (iii) of this provision, is a domestic end product.

The terms "Bahrainian, Moroccan, Omani, Panamanian, or Peruvian end product," "domestic end product," "end product," "foreign end product," "Free Trade Agreement country," "Free Trade Agreement country end product," "Israeli end product," and "United States" are defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act."
The Offeror certifies that the following supplies are Free Trade Agreement country end products (other than Bahrainian, Moroccan, Omani, Panamanian, or Peruvian end products) or Israeli end products as defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act."
Free Trade Agreement Country End Products (Other than Bahrainian, Moroccan, Omani, Panamanian, or Peruvian End Products) or Israeli End Products:

Line Item No.	Country of Origin

[List as necessary]

The Offeror shall list those supplies that are foreign end products (other than those listed in paragraph (g)(1)(ii) of this provision) as defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act." The Offeror shall list as other foreign end products those end products manufactured in the United States that do not qualify as domestic end products.
Other Foreign End Products:

Line Item No.	Country of Origin

[List as necessary]

The Government will evaluate offers in accordance with the policies and procedures of FAR part 25. Buy American-Free Trade Agreements-Israeli Trade Act Certificate, Alternate I. If Alternate I to the clause at FAR 52.225-3 is included in this solicitation, substitute the following paragraph (g)(1)(ii) for paragraph (g)(1)(ii) of the basic provision:
(g)(1)(ii) The offeror certifies that the following supplies are Canadian end products as defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act":
Canadian End Products:

Line Item No.	Country of Origin

[List as necessary]

Buy American-Free Trade Agreements-Israeli Trade Act Certificate, Alternate II. If Alternate II to the clause at FAR 52.225-3 is included in this solicitation, substitute the following paragraph (g)(1)(ii) for paragraph (g)(1)(ii) of the basic provision:
(g)(1)(ii) The offeror certifies that the following supplies are Canadian end products or Israeli end products as defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act":
Canadian or Israeli End Products:

Line Item No.	Country of Origin

[List as necessary]

Buy American-Free Trade Agreements-Israeli Trade Act Certificate, Alternate III. If Alternate III to the clause at 52.225-3 is included in this solicitation, substitute the following paragraph (g)(1)(ii) for paragraph (g)(1)(ii) of the basic provision:
(g)(1)(ii) The offeror certifies that the following supplies are Free Trade Agreement country end products (other than Bahrainian, Korean, Moroccan, Omani, Panamanian, or Peruvian end products) or Israeli end products as defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act":
Free Trade Agreement Country End Products (Other than Bahrainian, Korean, Moroccan, Omani, Panamanian, or Peruvian End Products) or Israeli End Products:

Line Item No.	Country of Origin

[List as necessary]

Trade Agreements Certificate. (Applies only if the clause at FAR 52.225-5, Trade Agreements, is included in this solicitation.)
The offeror certifies that each end product, except those listed in paragraph (g)(5)(ii) of this provision, is a U.S.-made or designated country end product, as defined in the clause of this solicitation entitled "Trade Agreements."
The offeror shall list as other end products those end products that are not U.S.-made or designated country end products.
Other End Products:

Line Item No.	Country of Origin

[List as necessary]

The Government will evaluate offers in accordance with the policies and procedures of FAR part 25. For line items covered by the WTO GPA, the Government will evaluate offers of U.S.-made or designated country end products without regard to the restrictions of the Buy American statute. The Government will consider for award only offers of U.S.-made or designated country end products unless the Contracting Officer determines that there are no offers for such products or that the offers for such products are insufficient to fulfill the requirements of the solicitation.
Certification Regarding Responsibility Matters (Executive Order 12689). (Applies only if the contract value is expected to exceed the simplified acquisition threshold.) The offeror certifies, to the best of its knowledge and belief, that the offeror and/or any of its principals–
□ Are, □ are not presently debarred, suspended, proposed for debarment, or declared ineligible for the award of contracts by any Federal agency;
□ Have, □ have not, within a three-year period preceding this offer, been convicted of or had a civil judgment rendered against them for: commission of fraud or a criminal offense in connection with obtaining, attempting to obtain, or performing a Federal, state or local government contract or subcontract; violation of Federal or state antitrust statutes relating to the submission of offers; or commission of embezzlement, theft, forgery, bribery, falsification or destruction of records, making false statements, tax evasion, violating Federal criminal tax laws, or receiving stolen property;
□ Are, □ are not presently indicted for, or otherwise criminally or civilly charged by a Government entity with, commission of any of these offenses enumerated in paragraph (h)(2) of this clause; and
□ Have, □ have not, within a three-year period preceding this offer, been notified of any delinquent Federal taxes in an amount that exceeds the threshold at 9.104-5(a)(2) for which the liability remains unsatisfied.
Taxes are considered delinquent if both of the following criteria apply:
The tax liability is finally determined. The liability is finally determined if it has been assessed. A liability is not finally determined if there is a pending administrative or judicial challenge. In the case of a judicial challenge to the liability, the liability is not finally determined until all judicial appeal rights have been exhausted.
The taxpayer is delinquent in making payment. A taxpayer is delinquent if the taxpayer has failed to pay the tax liability when full payment was due and required. A taxpayer is not delinquent in cases where enforced collection action is precluded.
Examples.

The taxpayer has received a statutory notice of deficiency, under I.R.C. §6212, which entitles the taxpayer to seek Tax Court review of a proposed tax deficiency. This is not a delinquent tax because it is not a final tax liability. Should the taxpayer seek Tax Court review, this will not be a final tax liability until the taxpayer has exercised all judicial appeal rights.
The IRS has filed a notice of Federal tax lien with respect to an assessed tax liability, and the taxpayer has been issued a notice under I.R.C. §6320 entitling the taxpayer to request a hearing with the IRS Office of Appeals contesting the lien filing, and to further appeal to the Tax Court if the IRS determines to sustain the lien filing. In the course of the hearing, the taxpayer is entitled to contest the underlying tax liability because the taxpayer has had no prior opportunity to contest the liability. This is not a delinquent tax because it is not a final tax liability. Should the taxpayer seek tax court review, this will not be a final tax liability until the taxpayer has exercised all judicial appeal rights.

The taxpayer has entered into an installment agreement pursuant to I.R.C. §6159. The taxpayer is making timely payments and is in full compliance with the agreement terms. The taxpayer is not delinquent because the taxpayer is not currently required to make full payment.
The taxpayer has filed for bankruptcy protection. The taxpayer is not delinquent because enforced collection action is stayed under 11 U.S.C. §362 (the Bankruptcy Code).
Certification Regarding Knowledge of Child Labor for Listed End Products (Executive Order 13126). [The Contracting Officer must list in paragraph (i)(1) any end products being acquired under this solicitation that are included in the List of Products Requiring Contractor Certification as to Forced or Indentured Child Labor, unless excluded at 22.1503(b).]
Listed end products.

Listed End Product	Listed Countries of Origin

Certification. [If the Contracting Officer has identified end products and countries of origin in paragraph (i)(1) of this provision, then the offeror must certify to either (i)(2)(i) or (i)(2)(ii) by checking the appropriate block.]
The offeror will not supply any end product listed in paragraph (i)(1) of this provision that was mined, produced, or manufactured in the corresponding country as listed for that product.
The offeror may supply an end product listed in paragraph (i)(1) of this provision that was mined, produced, or manufactured in the corresponding country as listed for that product. The offeror certifies that it has made a good faith effort to determine whether forced or indentured child labor was used to mine, produce, or manufacture any such end product furnished under this contract. On the basis of those efforts, the offeror certifies that it is not aware of any such use of child labor.
Place of manufacture. (Does not apply unless the solicitation is predominantly for the acquisition of manufactured end products.) For statistical purposes only, the offeror shall indicate whether the place of manufacture of the end products it expects to provide in response to this solicitation is predominantly-
□ In the United States (Check this box if the total anticipated price of offered end products manufactured in the United States exceeds the total anticipated price of offered end products manufactured outside the United States); or
□ Outside the United States.
Certificates regarding exemptions from the application of the Service Contract Labor Standards (Certification by the offeror as to its compliance with respect to the contract also constitutes its certification as to compliance by its subcontractor if it subcontracts out the exempt services.) [The contracting officer is to check a box to indicate if paragraph (k)(1) or (k)(2) applies.]
Maintenance, calibration, or repair of certain equipment as described in FAR 22.1003-4(c)(1).

The offeror □ does □ does not certify that–
The items of equipment to be serviced under this contract are used regularly for other than Governmental purposes and are sold or traded by the offeror (or subcontractor in the case of an exempt subcontract) in substantial quantities to the general public in the course of normal business operations;
The services will be furnished at prices which are, or are based on, established catalog or market prices (see FAR 22.1003-4(c)(2)(ii)) for the maintenance, calibration, or repair of such equipment; and
The compensation (wage and fringe benefits) plan for all service employees performing work under the contract will be the same as that used for these employees and equivalent employees servicing the same equipment of commercial customers.
Certain services as described in FAR 22.1003-4(d)(1). The offeror □ does □ does not certify that-
The services under the contract are offered and sold regularly to non-Governmental customers, and are provided by the offeror (or subcontractor in the case of an exempt subcontract) to the general public in substantial quantities in the course of normal business operations;
The contract services will be furnished at prices that are, or are based on, established catalog or market prices (see FAR 22.1003-4(d)(2)(iii));
Each service employee who will perform the services under the contract will spend only a small portion of his or her time (a monthly average of less than 20 percent of the available hours on an annualized basis, or less than 20 percent of available hours during the contract period if the contract period is less than a month) servicing the Government contract; and
The compensation (wage and fringe benefits) plan for all service employees performing work under the contract is the same as that used for these employees and equivalent employees servicing commercial customers.
If paragraph (k)(1) or (k)(2) of this clause applies–
If the offeror does not certify to the conditions in paragraph (k)(1) or (k)(2) and the Contracting Officer did not attach a Service Contract Labor Standards wage determination to the solicitation, the offeror shall notify the Contracting Officer as soon as possible; and
The Contracting Officer may not make an award to the offeror if the offeror fails to execute the certification in paragraph (k)(1) or (k)(2) of this clause or to contact the Contracting Officer as required in paragraph (k)(3)(i) of this clause.
Taxpayer Identification Number (TIN) (26 U.S.C. 6109, 31 U.S.C. 7701). (Not applicable if the offeror is required to provide this information to the SAM to be eligible for award.)
All offerors must submit the information required in paragraphs (l)(3) through (l)(5) of this provision to comply with debt collection requirements of 31 U.S.C. 7701(c) and 3325(d), reporting requirements of 26 U.S.C. 6041, 6041A, and 6050M, and implementing regulations issued by the Internal Revenue Service (IRS).
The TIN may be used by the Government to collect and report on any delinquent amounts arising out of the offeror's relationship with the Government (31 U.S.C. 7701(c)(3)). If the resulting contract is subject to the payment reporting requirements described in FAR 4.904, the TIN provided hereunder may be matched with IRS records to verify the accuracy of the offeror's TIN.
Taxpayer Identification Number (TIN).
TIN: .
TIN has been applied for. TIN is not required because:
Offeror is a nonresident alien, foreign corporation, or foreign partnership that does not have

income effectively connected with the conduct of a trade or business in the United States and does not have an office or place of business or a fiscal paying agent in the United States; Offeror is an agency or instrumentality of a foreign government; Offeror is an agency or instrumentality of the Federal Government.
Type of organization. Sole proprietorship; Partnership;
Corporate entity (not tax-exempt); Corporate entity (tax-exempt); Government entity (Federal, State, or local); Foreign government;
International organization per 26 CFR1.6049-4; Other .
Common parent.
Offeror is not owned or controlled by a common parent; Name and TIN of common parent:
Name . TIN .
Restricted business operations in Sudan. By submission of its offer, the offeror certifies that the offeror does not conduct any restricted business operations in Sudan.
Prohibition on Contracting with Inverted Domestic Corporations.
Government agencies are not permitted to use appropriated (or otherwise made available) funds for contracts with either an inverted domestic corporation, or a subsidiary of an inverted domestic corporation, unless the exception at 9.108-2(b) applies or the requirement is waived in accordance with the procedures at 9.108-4.
Representation. The Offeror represents that–
It □ is, □ is not an inverted domestic corporation; and
It □ is, □ is not a subsidiary of an inverted domestic corporation.
Prohibition on contracting with entities engaging in certain activities or transactions relating to Iran.

The offeror shall e-mail questions concerning sensitive technology to the Department of State at CISADA106@state.gov.
Representation and Certifications. Unless a waiver is granted or an exception applies as provided in paragraph (o)(3) of this provision, by submission of its offer, the offeror-
Represents, to the best of its knowledge and belief, that the offeror does not export any sensitive technology to the government of Iran or any entities or individuals owned or controlled by, or acting on behalf or at the direction of, the government of Iran;
Certifies that the offeror, or any person owned or controlled by the offeror, does not engage in any activities for which sanctions may be imposed under section 5 of the Iran Sanctions Act; and
Certifies that the offeror, and any person owned or controlled by the offeror, does not knowingly engage in any transaction that exceeds the threshold at FAR 25.703-2(a)(2) with Iran's Revolutionary Guard Corps or any of its officials, agents, or affiliates, the property and interests in property of which are blocked pursuant to the International Emergency Economic Powers Act (et seq.) (see OFAC's Specially Designated Nationals and Blocked Persons List at https://www.treasury.gov/resource-center/sanctions/SDN-List/Pages/default.aspx).
The representation and certification requirements of paragraph (o)(2) of this provision do not apply if-
This solicitation includes a trade agreements certification (e.g., 52.212-3(g) or a comparable agency provision); and
The offeror has certified that all the offered products to be supplied are designated country end products.
Ownership or Control of Offeror. (Applies in all solicitations when there is a requirement to be

registered in SAM or a requirement to have a unique entity identifier in the solicitation).
(1) The Offeror represents that it □ has or □ does not have an immediate owner. If the Offeror has more than one immediate owner (such as a joint venture), then the Offeror shall respond to paragraph (2) and if applicable, paragraph (3) of this provision for each participant in the joint venture.
If the Offeror indicates "has" in paragraph (p)(1) of this provision, enter the following information:
Immediate owner CAGE code: . Immediate owner legal name: . (Do not use a "doing business as" name)
Is the immediate owner owned or controlled by another entity: □ Yes or □ No.
If the Offeror indicates "yes" in paragraph (p)(2) of this provision, indicating that the immediate owner is owned or controlled by another entity, then enter the following information:
Highest-level owner CAGE code: . Highest-level owner legal name: . (Do not use a "doing business as" name)
Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction under any Federal Law.
As required by sections 744 and 745 of Division E of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235), and similar provisions, if contained in subsequent appropriations acts, The Government will not enter into a contract with any corporation that–
Has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability, where the awarding agency is aware of the unpaid tax liability, unless an agency has considered suspension or debarment of the corporation and made a determination that suspension or debarment is not necessary to protect the interests of the Government; or
Was convicted of a felony criminal violation under any Federal law within the preceding 24 months, where the awarding agency is aware of the conviction, unless an agency has considered suspension or debarment of the corporation and made a determination that this action is not necessary to protect the interests of the Government.
The Offeror represents that–
It is □ is not □ a corporation that has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability; and
It is □ is not □ a corporation that was convicted of a felony criminal violation under a Federal law within the preceding 24 months.
Predecessor of Offeror. (Applies in all solicitations that include the provision at 52.204-16, Commercial and Government Entity Code Reporting.)
The Offeror represents that it □ is or □ is not a successor to a predecessor that held a Federal contract or grant within the last three years.
If the Offeror has indicated "is" in paragraph (r)(1) of this provision, enter the following information for all predecessors that held a Federal contract or grant within the last three years (if more than one predecessor, list in reverse chronological order):
Predecessor CAGE code: (or mark "Unknown"). Predecessor legal name: .
(Do not use a "doing business as" name).
[Reserved].

Public Disclosure of Greenhouse Gas Emissions and Reduction Goals. Applies in all solicitations that require offerors to register in SAM (12.301(d)(1)).
This representation shall be completed if the Offeror received $7.5 million or more in contract awards in the prior Federal fiscal year. The representation is optional if the Offeror received less than $7.5 million in Federal contract awards in the prior Federal fiscal year.
Representation. [Offeror to check applicable block(s) in paragraph (t)(2)(i) and (ii)].
The Offeror (itself or through its immediate owner or highest-level owner) □ does, □ does not publicly disclose greenhouse gas emissions, i.e., makes available on a publicly accessible website the results of a greenhouse gas inventory, performed in accordance with an accounting standard with publicly available and consistently applied criteria, such as the Greenhouse Gas Protocol Corporate Standard.
The Offeror (itself or through its immediate owner or highest-level owner) □ does, □ does not publicly disclose a quantitative greenhouse gas emissions reduction goal, i.e., make available on a publicly accessible website a target to reduce absolute emissions or emissions intensity by a specific quantity or percentage.
A publicly accessible website includes the Offeror's own website or a recognized, third-party greenhouse gas emissions reporting program.
If the Offeror checked "does" in paragraphs (t)(2)(i) or (t)(2)(ii) of this provision, respectively, the Offeror shall provide the publicly accessible website(s) where greenhouse gas emissions and/or reduction goals are reported: .

In accordance with section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions), Government agencies are not permitted to use appropriated (or otherwise made available) funds for contracts with an entity that requires employees or subcontractors of such entity seeking to report waste, fraud, or abuse to sign internal confidentiality agreements or statements prohibiting or otherwise restricting such employees or subcontractors from lawfully reporting such waste, fraud, or abuse to a designated investigative or law enforcement representative of a Federal department or agency authorized to receive such information.
The prohibition in paragraph (u)(1) of this provision does not contravene requirements applicable to Standard Form 312 (Classified Information Nondisclosure Agreement), Form 4414 (Sensitive Compartmented Information Nondisclosure Agreement), or any other form issued by a Federal department or agency governing the nondisclosure of classified information.
Representation. By submission of its offer, the Offeror represents that it will not require its employees or subcontractors to sign or comply with internal confidentiality agreements or statements prohibiting or otherwise restricting such employees or subcontractors from lawfully reporting waste, fraud, or abuse related to the performance of a Government contract to a designated investigative or law enforcement representative of a Federal department or agency authorized to receive such information (e.g., agency Office of the Inspector General).
Covered Telecommunications Equipment or Services-Representation. Section 889(a)(1)(A) and section 889 (a)(1)(B) of Public Law 115-232.
The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (https://www.sam.gov) for entities excluded from receiving federal awards for "covered telecommunications equipment or services".
The Offeror represents that–

It□ does, □ does not provide covered telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument.
After conducting a reasonable inquiry for purposes of this representation, that
it □ does, □ does not use covered telecommunications equipment or services, or any equipment, system, or service that uses covered telecommunications equipment or services.
(End of Provision)

Alternate I (Oct2014). As prescribed in 12.301(b)(2), add the following paragraph (c)(11) to the basic provision:
(11) (Complete if the offeror has represented itself as disadvantaged in paragraph (c)(4) of this provision.)
Black American.
Hispanic American.
Native American (American Indians, Eskimos, Aleuts, or Native Hawaiians).
Asian-Pacific American (persons with origins from Burma, Thailand, Malaysia, Indonesia, Singapore, Brunei, Japan, China, Taiwan, Laos, Cambodia (Kampuchea), Vietnam, Korea, The Philippines, Republic of Palau, Republic of the Marshall Islands, Federated States of Micronesia, the Commonwealth of the Northern Mariana Islands, Guam, Samoa, Macao, Hong Kong, Fiji, Tonga, Kiribati, Tuvalu, or Nauru).
Subcontinent Asian (Asian-Indian) American (persons with origins from India, Pakistan, Bangladesh, Sri Lanka, Bhutan, the Maldives Islands, or Nepal).
Individual/concern, other than one of the preceding.

(END OF SECTION K)

SECTION L - INSTRUCTIONS, CONDITIONS, AND NOTICES TO BIDDERS

52.252-1 Solicitation Provisions Incorporated by Reference (FEB 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The bidder is cautioned that the listed provisions may include blocks that must be completed by the bidder and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the bidder may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es): www.acquisition.gov

CLAUSE REFERENCE	TITLE AND DATE	
52.204-6	Unique Entity Identifier	OCT 2016
52.216-27	Single or Multiple Awards	OCT 1995

L.1 52.211-1 Availability of Specifications Listed in the GSA Index of Federal Specifications, Standards and Commercial Item Descriptions, FPMR Part 101-29 (SEP 2023)

(a) The GSA Index of Federal Specifications, Standards and Commercial Item Descriptions, FPMR Part 101–29, and copies of Federal specifications, standards, and product descriptions can be downloaded from the ASSIST website at https://assist.dla.mil.
(b) If the General Services Administration, Department of Agriculture, or Department of Veterans Affairs issued this solicitation, a copy of specifications, standards, and commercial item descriptions cited in this solicitation may be obtained from the ASSIST website identified in paragraph (a) of this provision.

L.2 52.216-1 Type of Contract (APR 1984)

The Government contemplates award of a firm fixed price single award construction contract from this solicitation.

L.3 52.233-2 Service of Protest (SEP 2006)

a. Protests, as defined in section 33.101 of the Federal Acquisition Regulation, that are filed directly with an agency, and copies of any protests that are filed with the Government Accountability Office (GAO), shall be served on the Contracting Officer (addressed as follows) by obtaining written and dated acknowledgment of receipt from:

Laqulla Williams
Treasury Common Services Center (TCSC)

Bureau of Engraving and Printing
Laqulla.Williams@bep.gov

b. The copy of any protest shall be received in the office designated above within one day of filing a protest with the GAO.

(End of provision)

L.4 52.236-27 Site Visit (Construction) (FEB 1995)

a. The clauses at 52.236-2, Differing Site Conditions, and 52.236-3, Site Investigations and Conditions Affecting the Work, will be included in any contract awarded as a result of this solicitation. Accordingly, offerors or quoters are urged and expected to inspect the site where the work will be performed.

b. A site visit will be held on September 30, 2024 at 9:00 AM EST at 301 13th Street SW, Washington, D.C. 20228. Attendees must RSVP via email to the Contracting Officer at least 5 days prior to the site visit.

Name: Laqulla Williams
Email: Laqulla.Williams@bep.gov

(End of provision)

L.5 Cost of Preparing Proposals
The Government will not reimburse any Offeror for any costs incurred in the preparation and submittal of its proposal in response to this solicitation.

L.6 Inquiries

Questions concerning the solicitation document shall be submitted in writing via e-mail to the following address: laqulla.williams@bep.gov

ALL QUESTIONS MUST BE RECEIVED NO LATER THAN 12:00 noon ET, Friday, November 13, 2026.

The Government will make every attempt to answer questions which will not automatically result in the extension of the proposal due date.

The following information provides the instructions to Contractors for submitting a response to this solicitation:

The Contractor shall submit two (2) distinct and separate volumes clearly marked as: Volume I – Technical
Volume II – Business/Price Proposal

Proposals shall set forth full, accurate, and complete information as required by this Request for Proposal (RFP). The Government will rely on such information in the award of the contract. Offers shall be submitted and received electronically not later than 12:00 noon CST, Friday, December 11, 2026.

All offers submitted shall include a cover letter that is signed and dated by the contractor and that identifies the offer, Contractor, and RFP number. All offered volumes shall be labeled with the volume number and volume title (ie, Volume I- Technical), Offeror's corporate and dba name, and RFP number.

In addition, the completed past performance questionnaires shall be emailed directly from the evaluator to laqulla.williams@bep.gov. It is the offeror's responsibility to follow-up and ensure the questionnaires are received in a timely manner.

PROPOSAL CONTENT

Contractors that fail to provide the information requested in this RFP may be determined to be unacceptable, and; therefore ineligible for award.

Volume I – Technical

Volume I shall be limited to 30 pages, single-spaced with 12-point Times New Roman Font. The Technical Volume shall contain the following sections:

1. Cover Page (Does not count towards page count)
2. Table of Contents (Does not count towards page count)
3. Introduction
4. Factors 1, 2, 3, 4, and 5

Factor 1: Corporate Experience

The offeror shall describe 3 Government contracts, executed within the last 5 years, demonstrating experience acting as either sub or the prime contractor, which they functioned as the General Construction services contractor. Include projects with requirements such as design/build, renovations, upgrades, remodeling, daily oversight, coordination, and complex Mechanical, Electrical, and Plumbing (MEP) systems. If a current contract is listed, it must have been active for a minimum of six (6) months. The scope of work may include contracts identifying manufacturing experience or working in industrial environments where coordination with multiple complex building systems (i.e. chiller plants, compressed air plants, building management systems, etc.) and manufacturing processes are encountered. The following information shall be provided on each experience:

- Client/Company/Agency Name
- Client/Company/Agency Address
- Name, Title, Email, Phone of a currently available point of contact
- Contract/Agreement Number

- Contract/Agreement Dollar Value at time of award and cumulative amount to date
- Period of Performance (List the Base Period and each Option Period)
- Detailed narrative discussing how the referenced contract/project demonstrates the contractor's requisite knowledge, skills, resources and ability to accomplish the requirements in this RFP.
- Describe the extent to which the work required under the referenced effort is relates in size, scope and complexity to the solicited requirements. Contracts/projects should demonstrate experience acting as the prime contractor, managing construction subcontractors in design-build and design-bid-build projects. If showing experience as a subcontractor, it should be in design-build and design-bid-build projects. Contracts should demonstrate building alterations/renovations/repairs of historical and industrial facilities, accommodating printing and related printing processes.
- Describe any significant problems that arose during performance and how they were resolved.
- Include any additional information that will further describe the activities/functions performed and demonstrate the relationship of such experience to the requirements of this solicitation.

The contractor is responsible for verifying, ensuring and certifying that the information provided in support of its referenced experience is complete, comprehensive, accurate and current. The Government will neither make assumptions nor draw inferences regarding missing or incomplete data/information. Failure to supply complete reference information and a thorough description of the contractor's relevant experience may result in the proposal being determined ineligible for award.

Factor 2: Past Performance

A. Past performance represents the Government's confidence in the contractor's ability to successfully perform as proposed and is based on an assessment of the contractor's present and past performance. In order to facilitate the Government's evaluation of the contractor's past performance, the contractor shall submit a past performance questionnaire (attachment 01) to each of the references listed in the "Corporate Experience" section of the technical proposal or provide the associated Contractor Performance Assessment Report (CPAR) as an attachment to the technical proposal submission (any CPAR attached does not count toward the total page count). Past performance evaluations submitted that are not completed in either of the above forms, will not be considered.

B. Detailed instructions are included in a separate attachment. The completed Past Performance Questionnaires shall be emailed directly from the evaluator to Laqulla Williams at laqulla.williams@bep.gov and received not later than the closing date of this RFP. It is the
contractor's responsibility to follow-up and ensure the questionnaires are received in a timely manner.

C. Contractors are also advised that past performance information may be obtained from other sources known to the Government; and that the Government may also evaluate information from such other sources, even though the contractor does not include such information in its Proposal.

Factor 3: Technical Approach

The technical approach shall be specific and detailed enough to clearly demonstrate the contractor's understanding of the requirements in the statement of work. The contractor's proposed technical approach shall disclose, in as much detail as possible, the contractor's plan for accomplishing all phases of the requirement.

The technical approach shall address the extent of any proposed subcontracting including the identification of the subcontractor, which tasks/subtasks they will perform, and the percentage of work that the subcontractor will perform on each task/subtask.

Factor 4: Resource Plan/Key Personnel

The offeror shall describe the proposed team that will attend to all types of work within this contract, including upgrades, renovations, maintenance and repair. Included should be an organizational chart identifying lines of authority and supervisory responsibilities.

Key personnel shall consist of the following:

- Project Manager
- Specialized Technical Personnel
- Project Superintendent

Provide resumes of all key personnel listing their qualifications, special training and experience over the past five (5) years. Each resume should include at a minimum, the following information:

1. Name.
2. Educational background, including technical education/training.
3. Work experience covering the last 5 years, including titles, duties, dates, employer, and client references.
4. Specific qualifications to address critical elements of projects, project scheduling, and cost control.
5. Length of time employed with current firm

Factor 5: Project Plan

The offeror shall provide a detailed project management plan. The project plan must explore the specific approaches, methods, techniques and tools that will be used during performance. The plan must further elaborate on the proposed approach to the following

1. Resource Management
2. Inspection Procedures
3. Daily Reporting Procedures
4. Submittal Process
5. Quality Control Plan
6. Safety & Environmental Compliance
7. Procedures
8. Activity Hazard Analysis (AHAs)
9. Document Control Plan
10. Change Order Control Process
11. Value Engineering Procedures

VOLUME II - BUSINESS PROPOSAL INSTRUCTIONS

There is no page limitation to the Business/Price Volume; however, the volume shall be double-spaced with 12-point Times New Roman font. Certified cost and pricing data is not requested.

Offerors are required to complete the pricing table for Overhead and Profit percentage listed in section B.1 and include it as part of their Volume II submission.

The Business/Price volume shall include:

- acknowledgement of solicitation amendments (if any), and
- a completed section B.1 Overhead (including G&A) and Profit
- a copy of the signed Contractor Teaming Arrangement (if quoting as a team)
- Name and contact information for proposed Project Manager

(END OF SECTION L)

SECTION M - EVALUATION CRITERIA

BEST VALUE METHODOLOGY

As a result of this solicitation, The Government intends to establish a single contract award to the responsible contractor whose Proposal conforms to the solicitation and represents the best value to the Government, price and other factors considered.

Award will be based on the following factors 1) Corporate Experience, 2) Past Performance, 3) Technical Approach; 4) Key Personnel 5) Project Plan; and 6) Price. Factors 1and 2, Corporate Experience and Past Performance, are of equal value to each other, however are weighted heavier than the remaining factors. The remaining factors (3-6) are of equal importance. All non-price evaluation factors, when combined, are significantly more important than price. The award decision will be based on a best value trade-off among the evaluation factors; therefore, the Government may not award to the lowest price or the highest technically rated proposal if it does not offer the best VALUE to the Government, all factors considered.

Corporate Experience

The Government will evaluate the extent to which a contractor possesses relevant experience to the Government's requirements under this solicitation and the degree of similarity in terms of size, scope and complexity. The evaluation will involve an assessment of the depth, breadth, and relevance of experience of the contractor, with particular emphasis on experience in design/build, renovations, upgrades, remodeling, daily oversight, coordination, and complex MEP systems, along with experience with addressing periodic maintenance and urgent/emergency repairs. The evaluation will assess the degree of the experience in similarity in terms of size, scope, and technical complexity to the solicitation requirements. The Government will evaluate experience as it relates to firms with manufacturing experience or working in industrial environments where coordination with multiple complex building systems (i.e. chiller plants, compressed air plants, building management systems, etc.) and manufacturing processes are encountered.

When evaluating contractor experience under this solicitation, the Government will not consider the experience of proposed subcontractors except those considered major. Major subcontractors are those that account for at least 25% of the total value. The Government reserves the right to verify the cited experience. The Offeror shall demonstrate experience acting as the prime contractor and managing construction subcontractors in design-build projects.

Contractor Teaming Arrangements: Experience of each party to the contractor teaming arrangement will be evaluated only to the extent that it relates to the work that each party will be responsible for under the contract. Experience of the contractor teaming arrangement, operating as a team, is more relevant than experience of the individual parties to the team as it represents experience of the team rather than that of the individual players.

The evaluation will be made by reviewing the information submitted by the contractor. Failure of

a contractor to provide a thorough description of how its experience is similar in size, scope, and complexity to the solicited requirements may result in the proposal being determined ineligible for contract award.

Past Performance
Past performance is the measure of how a contractor has performed and satisfied its customers. Using the questionnaires and other available information, the Government will evaluate performance information on each contractor based on the past and present efforts.

The evaluation will include assessments in areas such as, Technical (quality of product or service, Schedule/timeliness, and Management or business relations.

Contractor Teaming Arrangements: Past performance of each party to the contractor teaming arrangement will be evaluated only to the extent that it relates to the work that each party will be responsible for under the contract. Past performance of the contractor teaming arrangement, operating as a team, is more relevant than the past performance of the individual parties to the team as it represents past performance of the team rather than that of the individual players.

Technical Approach

The Government will evaluate the extent to which the technical approach demonstrates the contractor's:

- strategy for providing services listed in the SOW
- utilization of subcontractors (if applicable);
- project management plan and the extent to which the plan demonstrates the contractor's ability to manage the project tasks, potential issues, and assigned personnel;
- the adequacy of the contractor's approach to providing experienced personnel to perform the requirements;
- plan to maintain continuity of assigned employees and ability to backfill vacancies in a timely manner;
- the adequacy of the contractor's resource allocation, including labor categories and level of effort to accomplish each of the tasks in the SOW; contingency plan that demonstrates the contractor's capability to prevent and adjust to major and minor interruptions during performance.

Resource Plan/Key Personnel

The Government will evaluate the adequacy of the offeror's:

- Approach to providing the resources with the appropriate skills, depth of experience, training, and professional qualifications
- Ability to maintain continuity of assigned employees and ability to back-fill vacancies in a timely manner
- Accessibility, availability, qualifications and continuity of key personnel

The Government will evaluate the adequacy of the Offeror's proposed resource allocation, including the labor categories and level of effort to accomplish each of the tasks listed in the SOW.

The key personnel shall have but not limited to the following qualifications: Specialized Technical Personnel:

1. Project Manager: Shall have a bachelor's degree from a U.S. accredited university or college with a major in engineering, architecture, or related technical field, and/or at least five years' experience in managing architectural, engineering or construction projects of similar size and scope and five (5) years' experience in Historical Government Buildings. The Project Manager shall be employed by the Prime Contractor.
2. Specialized Technical Personnel: Shall have a bachelor's degree from a U.S. accredited university or college with a major in engineering, architecture, or related technical field. Personnel shall demonstrate work experience, licenses (Professional Engineering) and technical competence of electrical, mechanical, structural/civil, architectural, fire protection, or environmental requirements covering the last five (5) years.
3. Project Superintendent: The Project Superintendent shall have a minimum of five (5) years' experience as a superintendent on projects similar in size and scope, and five (5) years' experience in Historical Government Buildings. be employed by the Prime Contractor. The project superintendent shall have overall responsibility for all operations on the jobsite.

Project Plan

The Government will evaluate the adequacy of the Offeror's demonstrated plan to manage the implementation of the solution and satisfying the requirements established in the SOW. The Government will evaluate the Project Management Plan as requested in section L, including key milestones and dependencies as well as the feasibility of the Offeror's specific approaches, methods, techniques and tools used for delivering on schedule and ensuring that deliverables and services are of high quality, while proactively anticipating and mitigating risks/problem areas. During the evaluation, the Government will evaluate the extent to which the following information/approaches provided by the offeror ensures/enables the successful achievement of the goals/tasks.

1. Project Management and Project Planning

2. Project Oversight and Monitoring (Schedule Management, Risk Management, Performance Management, Quality Management, Inspection, Safety)

PRICE

In accordance with FAR 15.404-1(b), a price analysis will be performed to determine that the proposed price is fair and reasonable. The offeror should complete and return the pricing table to indicate its overhead and profit rates proposed. Rates will be evaluated to determine fair and reasonable, and included in awardees' final contract.

TECHNICAL APPROACH EVALUATION FACTORS

Excellent	Proposal greatly exceeds the Government's requirements. The proposal solution is of the highest quality and is thoroughly justified or substantiated. It has a strength(s) in meeting the solicited requirements, and if any weakness(es) exist, they do not offset the strengths. The proposal does not contain any deficiencies. Overall, the proposed solution presents minimal risk to the Government.
Good	Proposal somewhat exceeds the Government's requirements. The proposal solution is high quality and is well justified or substantiated. It has a strength(s) and weakness(es) in meeting the solicited requirements, but the strengths more than outweigh the weakness(es). The proposal does not contain any deficiencies. Overall, the proposed solution presents low risk to the Government
Satisfactory	Proposal meets the Government's requirements. The proposed solution is of satisfactory quality and is well justified or substantiated. It has a strength(s) and weakness(es) in meeting the solicited requirements, but the strengths outweigh the weakness(es). The proposal does not contain any deficiencies. Overall, the proposed solution presents low to moderate risk to the Government.
Marginal	Proposal fails to satisfy the Government's requirements. The proposed solution contains insufficient evidence to demonstrate a satisfactory level of quality and it cannot be determined if it is justified or substantiated. The proposal may have a strength(s) in meeting the solicited requirements; however, they are offset by either significant weakness(es) or deficiencies. Corrections of significant weakness(es) and/or deficiencies could result in an satisfactory Proposal, without a major rewrite of the Proposal. Overall, the Proposal represents moderate to high risk for the Government.
Unsatisfactory	Proposal fails to satisfy the Government's requirements. The proposed solution is not reasonably justified or substantiated. In total, the solution contains numerous inconsistencies, significant weaknesses, and/or deficiencies. The Proposal may contain a strength(s), however, any strengths are outweighed by the significant weakness(es) and/or deficiencies. The Proposal has little to no chance of success and correction would require extensive revision that amounts to a major rewrite in order to be rated as satisfactory. The Proposal represents a high risk for the Government.

EXPERIENCE EVALUATION FACTORS

Extremely Similar	Experience clearly demonstrates prior work that is extremely similar in size, scope, and complexity. Cited experience includes many strengths that more than offset any weaknesses. Given the contractor's experience, there is no doubt the contractor has the ability to successfully perform this requirement.
Similar	Experience clearly demonstrates prior work that is similar in size, scope, and complexity. Cited experience includes strengths that more than offset any weaknesses. Given the contractor's experience, there is little doubt the contractor has the ability to successfully perform this requirement.
Somewhat Similar	Experience demonstrates prior work that is somewhat similar in size, scope, and complexity. Cited experience includes weaknesses that offset strengths. Given the contractor's experience, some doubt exists that the contractor has the ability to successfully perform this requirement.
Not Similar and/or Not Relevant	Experience fails to demonstrate prior work on projects similar in size, scope, and complexity. Cited experience includes weaknesses and no strengths. Given the contractor's experience, significant doubt exists that the contractor has the ability to successfully perform the requirement.

PAST PERFORMANCE FACTORS

Exceptional	Performance meets contractual requirements and exceeds many to the Government's benefit. Contractor accomplished performance with few minor problems for which corrective actions taken were highly effective.
Very Good	Performance meets contractual requirements and exceeds some to the Government's benefit. Contractor accomplishes performance with some minor problems for which corrective actions taken were effective.
Satisfactory	Performance meets contractual requirements. Contractor performance contains some minor problems for which corrective actions taken were satisfactory.
Marginal	Performance does not meet some contractual requirements; Contractor performance reflects a serious problem for which the contractor has not yet identified corrective actions. Proposed actions appear marginally effective or were not fully implemented.
Unsatisfactory	Performance does not meet most contractual requirements and recovery is unlikely in a timely manner. Contractor performance contains a serious problem for which the contractor's corrective actions were ineffective.

NIETHER FAVORABLE OR UNFAVORABLE	In the case of an offeror without a record of relevant past performance or for whom information on past performance is not available, the offeror may not be evaluated favorably or unfavorably on past performance.

(END OF SECTION M)

The following definitions shall be considered in this evaluation:

Strength: An element of the Proposal which exceeds a requirement of the solicitation in a beneficial way to the Government.
Weakness: A flaw in the Proposal that increases the likelihood of unsuccessful contract performance.
Significant Weakness: A flaw in the Proposal that appreciably increases the likelihood of unsuccessful contract performance.
Deficiency: A material failure of the Proposal to meet a Government requirement or a combination of significant weaknesses that increase the likelihood of unsuccessful performance to an unacceptable levels.

(END OF DOCUMENT)